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IN THE FOURTH JUDICIAL DISTRICT COURT - PROVO

IN AND FOR PROVO COUNTY, STATE OF UTAH

_____	)	
STATE OF UTAH,	)	Case No. 251403576
	)	
Plaintiff,	)	
	)	
v.	)	TRANSCRIPT OF:
	)	PRELIMINARY HEARING - DAY
TYLER JAMES ROBINSON,	)	FIVE
	)	
Defendant.	)	
_____	)	

BEFORE THE HONORABLE TONY GRAF

FOURTH DISTRICT COURT
137 NORTH FREEDOM BOULEVARD
PROVO, UT 84601

JULY 10, 2026

Reporter: Phoebe S. Moorhead, RDR, CRR, UT CCR
Certified Court Reporter for the State of Utah

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C O N T E N T S

DEFENSE WITNESSES:	<u>Page</u>
CAITLIN OLIVER.....	33
Direct Examination by Mr. Burt.....	33
Cross-Examination by Mr. McBride.....	70
Redirect Examination by Mr. Burt.....	76

-ooOoo-

E X H I B I T S R E C E I V E D

<u>Exhibit</u>	<u>Page</u>
Defense Oliver 157	36

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1 July 10, 2026

2 **P R O C E E D I N G S .**

3 (Proceedings commenced at 9:16 a.m.)

4 THE COURT: Court is now in session. Calling Case
5 251403576, State of Utah vs. Tyler James Robinson.

6 Counsel, please enter your appearances.

7 MR. GRUNANDER: Chad Grunander, Ryan McBride, Lauren
8 Hunt, David Sturgill for the state. And the county attorney
9 Jeff Gray and Chris Ballard are also here.

10 THE COURT: Good morning.

11 MS. NESTER: Good morning, your Honor. Kathy Nester,
12 Richard Novak, Staci Visser, and Michael Burt here for
13 Mr. Robinson, who's seated in the courtroom.

14 THE COURT: Good morning.

15 MS. NESTER: Good morning.

16 THE COURT: Mr. Robinson, good morning to you.

17 And for the record, the Court also recognizes the
18 presence of victim representative Ms. Erika Kirk. Ms. Kirk?
19 Good morning to you as well.

20 First, with respect to courtroom protocol, to
21 maintain security decorum, any individual that exits the
22 courtroom during proceedings will not be permitted to re-enter
23 until recess -- after recess. All counsel are expected to take
24 reasonable measures to safeguard confidential communication.
25 Such measures may include the use of screen protections on

1 electronic devices and care to avoid the inadvertent capture of
2 privileged or private discussions by recording equipment or by
3 those present in the courtroom.

4 Second, the Court will address the camera operator
5 and the still photographer. If both of you could please
6 approach the lectern.

7 The Court's purpose in this dialogue is to ensure
8 clarity regarding the expectations governing today's
9 proceedings. Could you both please state your roles for
10 today's hearing?

11 MS. CROWLEY: My role is to capture pool photography,
12 still photos.

13 MS. THACKREY: My role is for video in accordance
14 with the court decorum order.

15 THE COURT: And I apologize. Would you mind putting
16 your names on the record?

17 MS. CROWLEY: Tess Crowley.

18 MS. THACKREY: Meghan Thackrey with KSL.

19 THE COURT: Thank you. Have you both reviewed the
20 Court's standing decorum order?

21 MS. CROWLEY: Yes.

22 MS. THACKREY: Yes.

23 THE COURT: Do you understand the requirements set
24 forth in that order as it applies to your activities today?

25 MS. CROWLEY: Yes.

1 MS. THACKREY: Yes.

2 THE COURT: Do you require additional time to review
3 the order or to adjust equipment to ensure compliance?

4 MS. CROWLEY: No.

5 MS. THACKREY: No.

6 THE COURT: Do you anticipate any difficulty
7 complying with the order?

8 MS. CROWLEY: No.

9 MS. THACKREY: No.

10 THE COURT: All right. Thank you both.

11 Before we begin this morning, the Court wishes to
12 acknowledge the importance of the safety, dignity, and
13 well-being of all those who are present or who may be present
14 during these proceedings, including the parties, counsel,
15 witnesses, court staff, and members of the public. The Court
16 is also mindful of its solemn obligation to protect and uphold
17 the constitutional rights of Mr. Robinson and Ms. Kirk.

18 In furtherance of those important interests, all
19 persons attending these proceedings are reminded that portable
20 electronic devices are not permitted in the courtroom or on the
21 fourth floor. Cell phones are not permitted in the courtroom
22 unless expressly authorized. Any unauthorized possession or
23 the use of a cell phone or electronic device in the courtroom
24 may be addressed by the Court.

25 For those individuals who have a cell phone, I invite

1 you to join me as I silence my cell phone to ensure that the
2 proceedings today can proceed without distraction.

3 The Court also expects every person in attendance
4 will be treated with the dignity and respect to which they are
5 entitled. Consistent with this Court's standing decorum order,
6 all spectators shall remain quiet, civil, and orderly at all
7 times. Spectators shall not engage in conduct that is
8 distracting, disruptive, provocative, disrespectful, uncivil,
9 or threatening in any manner. Spectators shall not make
10 audible comments of any kind, shall not shake or nod their
11 heads, and shall not make gestures or other visible reactions
12 during the hearing.

13 Spectators shall also not wear or display pins,
14 buttons, signs, clothing, photographs, or other items
15 expressing support for or in opposition to any person connected
16 with this case or expressing any position concerning the status
17 of this case as a capital offense.

18 The Court appreciates the cooperation of all present
19 in maintaining a courtroom environment that is safe,
20 respectful, and orderly and faithful to the rights and dignity
21 of every person involved.

22 All right. My understanding is the parties wish to
23 address an issue before we get started. Is that correct?

24 MR. NOVAK: If we may.

25 THE COURT: Mr. Novak.

1 MR. NOVAK: Thank you, your Honor. And good morning.
2 I passed up to the Court after providing copies of it to
3 counsel for the state and counsel for the media a single piece
4 of paper. Does the Court have that?

5 THE COURT: I do. Thank you, Mr. Novak.

6 MR. NOVAK: Thank you, your Honor.

7 So every morning the Court has colloquy with the
8 camera operators about their ability to comply with this
9 Court's orders, and they acknowledge that they understand the
10 order and that they can comply with it. And the Court asks
11 them if they have any problem with it, and they state to the
12 Court that they do not have a problem with it.

13 We also spent many, many, many hours of court time
14 addressing which exhibits will and will not be published
15 through the electronic media. And this exhibit the Court
16 ordered would not be published through the electronic media,
17 and it was. And without belaboring the point, the Court can
18 imagine our concern that the media and the state, who control
19 this exhibit and the publication of this exhibit in the
20 courtroom, as per the Court's orders, failed to comply with
21 this Court's orders after all of the effort that we made and
22 the Court made to make sure that the Court balanced everybody's
23 rights, including the rights that we're concerned about, which
24 are Mr. Robinson's.

25 No doubt the counsel for the media and counsel for

1 the state will say that it was a very, very brief mistake, that
2 it was corrected as soon as they realized the error, but it's
3 done. It's out there. It's photographed. I'm informed
4 secondhand that if I want to buy this image and maybe even have
5 it framed and put behind museum quality glass, I can do so and
6 put it up in my office. Obviously I'm not going to do that.

7 But my point is it doesn't matter how long the
8 Court's order was violated when we live in an electronic world.
9 It's done and it's permanent, and we just wanted the record to
10 be clear that we're concerned that the Court's orders have been
11 violated, and they've been violated with respect to an order
12 that was specifically designed to protect Mr. Robinson's right
13 to a fair trial.

14 And I don't want to belabor the point any further.
15 I'm also not going to refer to the exhibit with anymore
16 specificity because it's not necessary.

17 THE COURT: Is there a requested remedy or potential
18 sanction that you feel is warranted given the actions which you
19 have outlined this morning?

20 MR. NOVAK: I think that we would like to think --
21 when I say "we," I mean Mr. Robinson's counsel -- about that.
22 We have, as the Court knows, repeatedly asked this Court --
23 moved this Court not to have electronic broadcast of this
24 proceeding, of any of the proceedings and specifically this
25 proceeding. The Court denied those motions and overruled our

1 objections to the specific EMC requests. So I think it's a
2 little premature, but I can represent to the Court that we will
3 suggest a remedy in advance of the next hearing.

4 THE COURT: Mr. Novak, I appreciate that, but I would
5 ask that if it is something that is concerning, that it be
6 addressed immediately. So I'm not going to wait until this --
7 I recognize and appreciate what you have described, and this
8 was on my mind a lot last night as well.

9 MR. NOVAK: Okay.

10 THE COURT: I don't want to sit on this. So I ask
11 you respectfully to confer with your counsel and come up with
12 that because I want to address it. I agree. It is concerning.
13 And it warrants examination and to be addressed immediately,
14 especially as we have a little bit left of our preliminary
15 hearing. So I want to give it the weight it is needed, and I
16 don't disagree with you.

17 MR. NOVAK: Then why don't -- why don't we -- with
18 the Court's indulgence, we don't need to empty the courtroom.
19 We can go talk about what an appropriate measured sanction can
20 be, and we can bring that suggestion back to the Court in a few
21 minutes.

22 THE COURT: All right. Well, before we do that, I
23 want to turn to the state and to the media to address what
24 you've addressed, and then obviously if there's a part two,
25 then the Court --

1 MR. NOVAK: I appreciate the invitation, and I also
2 appreciate the Court's desire to address the consequences, if
3 any, immediately. I was not trying to delay it. I just think
4 it's a -- it's an issue which warrants some thought. The Court
5 has said it gave it some thought. We will have a suggestion
6 very briefly.

7 THE COURT: Thank you. Turning to the state.

8 MR. MCBRIDE: Thank you, your Honor. I think at the
9 outset, it's important to recognize that everyone's doing their
10 best here. The Court is. I know the clerks are. I think the
11 media is. We certainly are. And the defense is. This issue
12 came up in the context of an examination of a witness. One
13 exhibit was published. Before the exhibit at issue was also
14 brought onto the screen, I explained what we were going to do.
15 And then the exhibit was brought onto the screen.

16 I reviewed the video last night. The camera was --
17 captured this for approximately two seconds. The camera
18 operator I think acting in diligence and appropriateness
19 immediately panned as soon as she realized that there was a new
20 exhibit on the screen. The Court took it down. And as soon as
21 they realized that an exhibit was on the screen, I immediately
22 instructed my paralegal to take it down, and it was.

23 Defense -- I think everyone involved here made quick
24 and appropriate efforts as soon as they realized the mistake
25 had been made to remedy and mitigate that issue. As I

1 explained what I was having -- what we were going to do,
2 defense counsel did not object as that happened. And the
3 reason I bring that up is because of the requirement for timely
4 objections.

5 Moreover, I do want to say this exhibit was read into
6 the record. It was allowed to be read into the record earlier.
7 It is also in an earlier pleading, which is the Information.
8 This portion of that exhibit I understand is in the
9 Information. And it is largely cumulative of Exhibit 16 and
10 16.1, which were previously admitted into evidence and
11 published to the media.

12 Finally, we are going to be dealing with a lot of
13 publicity when it comes to media coverage, and I think that's
14 really where the remedy is going to be addressed. I understand
15 there may be a remedy that can be fashioned today to prevent
16 this kind of thing going forward -- or going on in the future
17 in this hearing, but I think ultimately that's where this will
18 be addressed.

19 Any other questions for me, your Honor?

20 THE COURT: Well, not at this time. I will afford
21 you the opportunity obviously to respond when defense comes
22 back. I want to weigh this and take it into consideration.
23 And I find your representations to be accurate as to what I
24 occurred.

25 I believe I noticed it and asked for it to be taken

1 down because I have a live stream on that screen for that very
2 purpose. And the sequence I believe -- I made note -- and if
3 I'm wrong, please correct me. It's been a long four past days.
4 But that's the only addition that I find to the representation.

5 And certainly, Mr. Novak, feel free to correct it if
6 you believe the sequence was any different. I just want to
7 make sure a clear record is being made of what happened in
8 order for whatever happens next to be appropriate and
9 proportional to the actions that occurred.

10 MR. MCBRIDE: No, and that's consistent with my
11 memory, and I also reviewed the video, the live stream as well,
12 in preparation for this issue today. So that's exactly what I
13 think happened. From my perspective, examining the witness, I
14 did not have a view of the -- of what was being published to
15 the public and the media. And so I think the Court
16 immediately, as soon as it recognized that, brought that to the
17 everyone's attention.

18 THE COURT: Thank you, Mr. McBride.

19 To the media.

20 MR. JUDD: Good morning, your Honor.

21 THE COURT: Good morning.

22 MR. JUDD: I appreciate the opportunity to be here
23 and speak on behalf of the media. I think our understanding of
24 what happened is consistent with what both the defense and the
25 state has said here, so I don't want to belabor that point.

1 But here's how I understand it. There's two exhibits at issue.
2 Those exhibits were used yesterday in part because the
3 juxtaposition of those can two exhibits might have provided
4 some sort of benefit to the Court.

5 The first of those exhibits was asked to be published
6 through all three of the Court's phases. The Court said it
7 will be admitted into evidence, will be shown in the courtroom,
8 will not be shown on the cameras. That happened about three
9 hours into the hearing. That all went smoothly and well. That
10 operated exactly as it is -- as it is intended to. That
11 requires the participation of everyone, the Court, the defense,
12 the state, media, camera operator, all to do that well.

13 Later in the day, when -- in the video I reviewed,
14 this was about five hours into the run time yesterday. The
15 second exhibit that was going to be compared side by side was
16 introduced. That also went through that three-step process.
17 In that case, the Court said that that could be admitted into
18 evidence, shown to the court, and then also shown on the
19 cameras. So it was. It was put on the courtroom cameras.

20 At that point, there was what I think is a useful
21 practice by the camera operator to wait a beat because
22 sometimes mistakes do happen. Right? In that case, though,
23 that was authorized, so the camera then panned to the screen
24 which is set up specifically for the camera operator to be able
25 to capture that.

1 Examination on that exhibit began. Then because the
2 examination seemed to call for that juxtaposition, without much
3 warning for anyone involved, the previous exhibit that was
4 intended to be juxtaposed was placed on the screen. From I
5 think an observer's view who didn't know where the testimony
6 was going without warning. The camera operator I think quite
7 astutely, within seconds, recognized this is a different
8 exhibit and, recalling the Court's prior order, recognized "I
9 should pan off" and did within seconds. I think at the time
10 that was happening, the Court also caught that and said, "Let's
11 not do that."

12 Now -- and that was the end of it. I think the two
13 seconds was about right. I don't want to minimize that. I
14 understand the point Mr. Novak is making. We are operating in
15 some ways on high wire. And we are trying to place as many
16 nets as we can, and all the parties are working together to try
17 to do that. But in the age in which we live, one of the
18 challenges is that sometimes when something like that is placed
19 on a live stream, someone can screenshot it, and, like
20 Mr. Novak said, if they want to put that for sale on the
21 internet, then they can.

22 That's why working together to ensure that even small
23 mistakes like that don't happen is critical. And the media has
24 full -- the media coalition that are given the opportunity and
25 the benefit of being able to be here to run cameras and to take

1 photographs have complete buy-in on that point. There are of
2 course people out there watching the live stream that are not
3 part of our coalition that we can't control. And that's why
4 it's so important that we get these pieces right.

5 I do want, without going too far into the evidence,
6 to note not only that several lines of this exhibit are
7 available publicly in the Information, but that the full
8 text -- full text, every word, of that exhibit is contained in
9 a search warrant in this case that was initially filed on
10 September 17th. This is in the Fourth District, but in a
11 different court. Was held for six months as search warrants
12 often are. But then on March 17th -- March 16th/March 17th,
13 was released in full. On page 7 of that search warrant is the
14 full text of this exhibit.

15 I don't want to suggest that anybody gets the right
16 to say, "Well, I think it's public. The Court has said don't
17 show it on the screen. But since I think it is, we'll just
18 come back later on and tell the Court it's not a big deal
19 because it's already public." That's not how it works. If we
20 say we think it's in the public, the Court says, "I understand
21 that, but I'm going to make an order," that order should be
22 adhered to.

23 But I do -- for purposes of prejudice, for potential
24 remedy, for the Court's concern and the Court's sleepless
25 nights, I do want the Court to know that as well. And members

1 of our coalition have pointed out to me as we've talked about
2 this, while we take this very seriously, it is true in this
3 case that the full text of that -- not the image of the exhibit
4 itself, but the full text is already in the public sphere, has
5 been reported on, and is out there.

6 I only want to reinforce, to close, the recognition
7 that the media, our coalition, I as an attorney for that
8 coalition, have an obligation to make sure that mistakes don't
9 get made. And in this case, even though I believe that the
10 camera operator didn't act in violation of the Court's decorum
11 order, you know, didn't do something that was forbidden by
12 that, that there was an order that said "Don't publish this
13 exhibit," and because it flashed on the screen when the camera
14 operator was filming that screen, that did happen.

15 The media's fully bought in. I as one of the
16 attorneys and the other attorneys for the media coalition are
17 fully bought in on a goal to make sure that this kind of thing
18 doesn't happen. Of course I understand that Mr. Novak and the
19 defense needs to make a record and make an objection. And I
20 also recognize and appreciate and understand the Court's role
21 in trying to make sure it imposes whatever sort of direction,
22 caution, sanction, response that it believes is needed to make
23 sure that its orders are recognized and adhered to. And I want
24 the Court to know that we'll understand that and we'll comply
25 with whatever the Court orders.

1 THE COURT: Thank you. Anything further before we
2 break? Mr. Novak?

3 MR. NOVAK: We don't need to break.

4 THE COURT: Okay.

5 MR. NOVAK: Unless the Court wants a break.

6 THE COURT: I want to -- I want to review this. I'm
7 sure there is a stream out there. I want to look at it again
8 in order to appreciate the full effect and exposure. I
9 remember it, but given the nature of this and trying to weigh
10 the constitutional rights of all parties, I want to be thorough
11 and look at it exactly so as we move forward, as I evaluate
12 what's being requested by the parties, that I am at the level
13 of knowledge. And because what it is, it was on screen, I want
14 to look at it, how long, what exactly was on screen and -- in
15 order to be at the point of saying, "Okay. I fully
16 understand." I mean, I was here. I saw it. I noticed it on
17 screen. But again, I want to take that extra two minutes to
18 review that.

19 MR. NOVAK: I'm not suggesting that we rush through
20 this at all. I just want the Court to understand that our
21 request for the remedy and the sanction, we are prepared to
22 share that with the Court. But we can certainly wait until the
23 Court has had an opportunity to review whatever the Court
24 thinks it needs to review.

25 The permanence of this violation of the court order

1 is a different issue from how long it took to correct the
2 violation. It's a permanent consequence. In other words, that
3 image is out there forever and ever in violation of the Court's
4 order no matter what actions the Court, the state, and the
5 media took to remedy it because that's the technological world
6 we live in.

7 So that's my response, if I may, to the arguments.
8 But we can hold our suggestion until the Court's ready for it.

9 THE COURT: All right. And if the parties feel it
10 would be helpful to confer while the Court is reviewing it, you
11 may just so that if you choose to -- I encourage it. If you
12 don't, I respect that. The Court's going to take about five
13 minutes. Again, I just want to review it to be brought up to
14 full speed and just to have it freshly in my mind.

15 MR. NOVAK: I'm going to make one more point if I
16 may, and that is this is not the first time that this has
17 happened. We had earlier proceedings in this case where the
18 cameras depicted images inside the courtroom that the Court had
19 prohibited. And the Court imposed certain consequences on the
20 media as a result of that. And so that's just something to
21 keep in mind. In my opinion, if I may. Thank you.

22 THE COURT: All right. Before the Court takes a
23 five-minute recess to review this, does any party need the
24 benefit of the record based off the dialogue between me and
25 Mr. Novak? All right. Not seeing any party respond. The

1 Court's in recess. We'll come back at 9:45. Court is in a
2 brief recess.

3 (Off the record from 9:39 a.m. to 10:06 a.m.)

4 THE COURT: Court is back in session. Noting the
5 presence of all counsel and parties.

6 And where we left off is the Court took a recess to
7 address -- to review the video. And I appreciate the patience
8 of the parties as well as everyone in attendance. When it
9 comes to constitutional matters and balancing constitutional
10 rights and transparency, this Court will take the necessary
11 time to make sure it's given the weight it deserves, and it is
12 deserving of every moment that has been spent.

13 Mr. Novak, turning to you. Perhaps before you begin,
14 let me go ahead and make a record of what I noted that is at
15 issue. After I put this on the record, certainly if either
16 side wishes to be heard about the Court's understanding, I
17 welcome your comments.

18 Exhibit 24 was displayed on the monitor visible to
19 the media camera. Exhibit 16 was -- was displayed on all
20 monitors and appeared on the live stream for approximately 3
21 and one-half seconds. The camera operator redirected the
22 camera before any party called attention to the display of
23 Exhibit 16. Approximately 16 seconds later, the Court observed
24 the image and stated, "Let me stop you, Mr. McBride. I'm not
25 sure. Is this being broadcast?"

1 Mr. McBride responded, "Let's take that down."

2 The full text of Exhibit 16 had previously been made
3 public through a search warrant that was publicly available on
4 or before April 2026. The portion displayed on the monitors
5 did not contain the full note and consisted of approximately 78
6 words. Approximately 15 of those words were included in the
7 Information filed on September 16th, 2026. In addition, the
8 full note was read into the record during the preliminary
9 hearing.

10 The Court previously ordered that Exhibit 16 be
11 admitted into evidence and permitted its display within the
12 courtroom but prohibited its publication through the camera
13 used for the live stream. And that concludes the findings of
14 the Court as it relates to this issue.

15 Do the parties wish to be heard -- before we go into
16 what you're requesting about the record on what occurred?

17 MR. MCBRIDE: Your Honor, your recitation is
18 accurate. My earlier comments were based on my memory
19 reviewing this last night. In the recess, I reviewed the feed
20 again, and what you have said today is accurate.

21 THE COURT: Thank you.

22 Mr. Novak, any --

23 MR. NOVAK: No, your Honor. I don't -- I don't take
24 issue with the Court's factual summary.

25 THE COURT: All right. Turning to you, Mr. Novak.

1 MR. NOVAK: Thank you, your Honor. We're going to
2 renew our request to exclude all electronic media coverage from
3 all future proceedings. That was our motion docketed at number
4 305. And that included video cameras, still photography, and
5 audio. This is the second time that the Court's orders
6 concerning the scope of electronic media coverage have been
7 violated. I'm a baseball fan, and I just don't think the Court
8 needs to wait for the third strike. Two strikes is enough.

9 If I may, the alternative remedy which we think is
10 not wholly adequate, which is why we think it's an alternative
11 and a less -- a less desirable alternative is to -- for this
12 Court to both reverse its prior order authorizing electronic
13 media coverage of today's hearing, which we had previously
14 filed an objection to after the Court -- I would say
15 preliminarily granted the request for today. That was sort of
16 the chain of events. And that the Court proactively preclude
17 electronic media coverage at the last day of the preliminary
18 hearing, which will be September 1st.

19 Now, I understand that there has not yet been roadway
20 quest for electronic media coverage for September 1st, but
21 there is no doubt that there will be, just as this Court
22 previously observed that it wasn't prepared to preclude
23 electronic media coverage at the preliminary hearing because
24 there had not been any requests. There were requests, and
25 those that were timely were all granted. The Court denied one

1 request because it was not timely for one particular day.

2 So I guess the way it would be is any request for
3 electronic media coverage of September 1st will be denied
4 because that's the appropriate sanction for what happened
5 yesterday.

6 The fact that the content of the exhibit was
7 previously summarized but the state in certain documents which
8 became public because the state didn't take any actions to seal
9 them beyond the six-month period, the fact that the contents of
10 the exhibit were read in open court is not the issue. The
11 issue is when the Court issues an order, everybody must comply
12 with it. And there are reasons for the order. And the
13 reasons, as this Court stated, are to protect Mr. Robinson's
14 right to a fair trial.

15 So no doubt that the Court balanced those prior ways
16 in which the content of this exhibit had already been disclosed
17 when the Court decided that there would not be electronic media
18 coverage. The fact that we have all known of that exhibit,
19 that's a fact that we have all been aware of as we've gone
20 along.

21 So to summarize -- and then I will stop because I
22 know we still have a witness here. And of course the Court
23 needs to hear from the state and counsel for the media I
24 suspect. Is we would like the Court to reconsider its order
25 denying motion 305 and grant it for the balance of all of the

1 proceedings in this matter or, as an alternative, the Court
2 prohibit any further electronic media coverage of the
3 preliminary hearing, which includes September 1st.

4 THE COURT: Thank you, Mr. Novak.

5 MR. NOVAK: Thank you very much.

6 THE COURT: Turning to the state and then to the
7 media.

8 MR. MCBRIDE: Yes, your Honor. As to the remedy,
9 we've -- we've heard of instances where the media has been able
10 to delay publication of the recordings of the proceedings.
11 We've heard of instances where that has been a short delay of
12 like 30 seconds. I've talked to the media attorney about this,
13 and they do not have the capability to do that right now. My
14 suggestion would be for future proceedings to here order the
15 media to look into that capability. And that would be a remedy
16 that perhaps could be used in the future. I think that would
17 be a satisfactory remedy to avoid this type of thing in the
18 future.

19 As to the other remedies requested, we have one
20 witness. The final witness -- well, the defense has one
21 witness. That witness is an ATF DNA forensic biologist. And I
22 assume that the exhibits that will be admitted through her will
23 be of that nature. We've already, in fact, admitted the report
24 that she is going to be testifying to. The reports, I should
25 say. That's Exhibits 30 and I believe 34. And so I don't

1 think we have -- and those have already been published. I
2 don't think we have the same risks or -- I'll just say risks
3 with her testimony as we do with some of this other evidence
4 that has already been admitted.

5 THE COURT: Thank you.

6 To the media.

7 MR. JUDD: In a proceeding like this, the parties and
8 the Court and the media are working together to learn and to
9 refine their processes. I hear Mr. Novak's remarks about
10 challenges that we've run into in the past. I recall -- it
11 hasn't been that long ago -- a time when the camera was placed
12 in a location in the courtroom that was causing challenges.
13 The Court moved it. When there was challenges with aspects of
14 the Court's ruling, the Court reiterated those, and those
15 processes improved. We are getting better at this.

16 Media is on board and recognizes the Court's
17 obligation and its significant efforts to balance the interests
18 here. In light of the Court's ruling, including its
19 recognition that the media operator in this case beat almost
20 all of us to the punch -- right? -- and saw what was happening
21 on the screen and moved away as quickly as they could.

22 We believe that the procedures that the Court
23 currently has in place, even if they don't, every moment of
24 every hearing, deliver the result that we are intending to
25 deliver, those processes are working. I don't believe that a

1 further adjustment, much less a sanction, much less a
2 revisitation of something that says let's keep every
3 photographer, every camera out of this courtroom for every
4 proceeding. In light of the Court's well reasoned and
5 exhaustive rulings after long briefing on all of this, the
6 Court is currently balancing these interests correctly; and we
7 therefore ask the Court to allow the parties to recognize the
8 time we're dedicating this morning represents a reiteration of
9 the importance of these principles. The media and the parties
10 all recognize that and will continue to endeavor at all times
11 to do all that we can to ensure that those are adhered to and
12 let the parties go forward under the current procedures without
13 further order or sanction by the Court.

14 THE COURT: Thank you. Any further arguments before
15 the Court issues its ruling?

16 MR. NOVAK: No, but thank you for the opportunity.

17 THE COURT: Thank you. And just updating my notes as
18 I -- I'm intending to issue this ruling right now. I'm just
19 making sure that I'm capturing all the points made in the
20 argument right now.

21 All right. I'm almost done. I appreciate the
22 parties' patience. This issue rises to the level that
23 necessitates great care. And as my practice, I don't like to
24 rush or make snap decisions, and I want to give this the full
25 analysis that its due. So thank you again for your patience.

1 All right. The Court will issue its ruling on the
2 request by defense. The constitutional rights to Mr. Robinson
3 and Ms. Kirk are paramount. Although transparency and judicial
4 proceedings is a fundamental interest, it must be balanced
5 against the constitutional rights of all parties.

6 Having considered the arguments presented by counsel
7 and having reviewed the events that occurred yesterday, the
8 Court finds that its order prohibiting the publication or
9 broadcast of Exhibit 16 by the media camera was violated. The
10 Court agrees with defense this constituted a violation of the
11 Court's order. Compliance with court orders is essential in
12 all proceedings and is of particular importance given the
13 nature of these proceedings.

14 With respect to defense's request as a sanction that
15 the Court reverse its ruling on defense motion 305, motion to
16 exclude cameras, the request is respectfully denied. The
17 analysis underlying the Court's prior ruling remains unchanged,
18 and the Court adheres to its reasoning and conclusions.

19 With respect to the defense's alternative request as
20 a sanction to prohibit all cameras and electronic equipment
21 from today's proceedings, thereby preventing the electronic
22 capture of the proceedings for those inside and outside of the
23 courtroom, the request is granted in part and denied in part.
24 Effective immediately, members of the media shall no longer
25 capture or broadcast any exhibits displayed by the parties

1 during today's proceedings. The Court finds this sanction to
2 be proportional and appropriate in light of the violation of
3 the Court's prior order. The Court reserves this sanction as
4 it relates to September 1st. It is not before the Court.
5 There has not been a request for electronic media coverage and
6 the Court won't issue a preruling. When it becomes -- when
7 that request has been filed and all the deadlines which the
8 Court has imposed in regards to the EMC filing are in place, if
9 motions are filed, the Court will entertain motions and brief
10 argument ahead of the September 1st hearing and address it at
11 that time. This is the ruling of the Court. Thank you.

12 Turning to the defense. If you wish, you may call
13 your next witness.

14 MR. GRUNANDER: Judge, we would like the benefit of
15 the record before we start taking evidence today.

16 THE COURT: Yes. Mr. Grunander. And I'll allow all
17 parties given the ruling of the Court briefly.

18 MR. GRUNANDER: And I'll be brief, Judge. And this
19 is in relation to the continued taking of evidence today. And
20 I'll start my statement, Judge, with something that was very
21 insightful that you said the other day. You mentioned, and I
22 quote, "Sometimes you need to take time to save time," close
23 quote. And so that's my purpose for standing up here this
24 morning.

25 We have spent the better part of a day, a little over

1 five hours I believe, hearing from witnesses that the defense
2 has called at this preliminary hearing. And no doubt the
3 defense is entitled to call witnesses at a preliminary hearing
4 as allowed by the rules. But I think it's important that the
5 Court remind all parties about the purpose of this hearing.
6 This is a probable cause hearing as your Honor has repeatedly
7 stated.

8 The defense has invoked the term "reliability" many
9 times. And the Court frankly has found the evidence that's
10 been admitted, the testimony. As a gatekeeper, the Court has
11 found it reliable. It's been presented. The exhibits have
12 been found reliable. So any questions of additional
13 reliability are really questions of credibility of the witness
14 and weighing of the evidence. And that is not really what this
15 Court engages in at the probable cause standard.

16 And so this is all couched in the context of a likely
17 forthcoming standing objection that the state may lodge. If
18 the testimony is long and drawn out and exceeds the scope of
19 the preliminary hearing, gets into areas of a 702 hearing,
20 possibly even trial, we will lodge this objection. But I
21 wanted to just simply state the authority, Judge, behind our
22 objection if we do make that.

23 As the Court is well aware, the magistrate at this
24 stage of the case must view the evidence in the light most
25 favorable to the prosecution. And that's cited to in a number

1 of Utah cases to include State vs. Schmidt. Schmidt continues.
2 "This means that when reasonable inferences from the evidence
3 cut both for and against the state's case, the magistrate lacks
4 the discretion to choose between them and must leave such a
5 determination to the fact finder at trial."

6 A few other cases I would like to refer the Court to.
7 State vs. Pledger, which is a Utah 1995 Supreme Court case.
8 Speaking of this standard, the Court says, "The standard bars
9 the magistrate from requiring the prosecution to address or
10 even eliminate alternative inferences that could be drawn from
11 the evidence in favor of the defense." So even assuming the
12 defense scores points today in calling these witnesses, again,
13 the Court cannot really weigh those in favor of the defense.

14 State vs. Hester, which is a Utah Court of Appeals
15 case, 2000, whether there is conflicting evidence, quote, "the
16 magistrate may not sift or weigh the evidence, but must leave
17 those tasks to the fact finder at trial." Of course we're not
18 at trial yet.

19 State vs. Virgin, a Utah 2006 Supreme Court case,
20 indicates that a magistrate may only disregard evidence at a
21 preliminary hearing if it is, quote, "so contradictory,
22 inconsistent, or unbelievable that it is unreasonable to base
23 belief of an element of the prosecution's claim on that
24 evidence."

25 There's a State vs. Driesbeke case, which is a Utah

1 Court of Appeals case, 2010. "Magistrates may only disregard
2 or discredit evidence that is wholly lacking and incapable of
3 creating a reasonable inference regarding a portion of the
4 prosecution's claim, but must leave all the weighing of
5 credible but conflicting evidence to the trier of fact."

6 And finally, State vs. Lopez, a Utah 2020 Supreme
7 Court case. Speaking of this probable cause standard at a
8 preliminary hearing, the Court said, "Under this low bar, it
9 may be difficult for the defense to overcome a prima facie
10 showing of probable cause. Even an alleged victim's
11 recantations may sometimes be insufficient given that the
12 magistrate must view all evidence in the light most favorable
13 to the prosecution and draw all reasonable inferences in favor
14 of the prosecution," close quote.

15 Judge, your Honor has heard four days of testimony
16 now. The evidence is overwhelming. It's devastating. And the
17 question needs to be asked -- the purpose of continuing with
18 testimony if it's long and drawn out. Of course the defense
19 has the right to call witnesses, but it needs to be within the
20 context of this preliminary hearing. So again, we may be
21 lodging a standing objection of relevance and exceeding the
22 scope of this hearing. That's my record.

23 THE COURT: Thank you, Mr. Grunander.

24 Either party -- other parties wish to be heard as it
25 relates to Mr. Grunander's statement? To the defense?

1 MR. BURT: I'm not sure what was being requested by
2 Mr. Grunander. As I indicated to the Court during the
3 testimony of the last witness, we had discussion with the state
4 prior to the start. We had a scheduled date for the Court to
5 rule on objections. And the purpose of that hearing was so
6 that we wouldn't have to fly witnesses out from the East Coast
7 if there was going to be a standing objection. Prior to that
8 hearing taking place, the state contacted us after they had
9 participated in interviews of Ms. Oliver and the other experts
10 and indicated to us, and we indicated to the Court, that there
11 was going to be no standing objection to the testimony of these
12 witnesses.

13 So if he's lodging a standing objection now, I think
14 he's waived it, or he should be estopped from asserting it
15 given the circumstances. I didn't hear that, that he was
16 asserting that. And I intend to keep this next witness focused
17 on the issue that I think is relevant, which is the state
18 presented DNA reports through a nonexpert. They selectively
19 read into the record a portion of those reports, which left an
20 extremely misleading impression of the significance of that
21 evidence.

22 So I have the author of the report here, and I'm
23 going to hopefully educate the Court on what the limitations
24 are of the report, and that's it. I hope to be done with the
25 witness by noon, direct and cross. And that will be the end of

1 it.

2 THE COURT: All right. Thank you, Mr. Burt. And
3 before I have you call the witness, just want to make sure that
4 the media had a -- well, I'm not sure if the media needs to be
5 heard on Mr. Grunander's response?

6 MS. URESK: No, your Honor.

7 THE COURT: All right. Thank you.

8 All right. Mr. Burt, you may call your next witness.

9 MR. BURT: Thank you. I'll call Ms. Oliver.

10 Ms. Oliver, if you'd like to come forward and be
11 sworn in.

12 (Witness sworn.)

13 THE COURT: All right, ma'am. You may be seated.
14 And there's a water bottle to your left if you wish. And after
15 you're seated, if you wouldn't mind adjusting that microphone,
16 bringing it close to you to pick up your testimony.

17 Mr. Burt, your witness.

18 MR. BURT: Thank you.

19 CAITLIN OLIVER

20 called as a witness herein, having been first duly sworn by the
21 Clerk to tell the truth, was examined and testified as follows:

22 DIRECT EXAMINATION

23 BY MR. BURT:

24 Q. Could you tell us your name, please?

25 A. Caitlin Oliver, O-L-I-V-E-R.

1 **Q.** And Ms. Oliver, could you bring that mic a little bit
2 closer so -- I want to make sure your voice is projected.
3 Thank you.

4 What do you do for a living?

5 **A.** I work for the Bureau of Alcohol, Tobacco, Firearms,
6 and Explosives as a DNA section chief.

7 **Q.** And how long have you held that position?

8 **A.** I've been a section chief since January, and I've
9 worked with ATF for about nine years. Prior to that, I was a
10 forensic biologist.

11 **Q.** And where were you a forensic biologist before you
12 started to work for the ATF?

13 **A.** Prior to the ATF, I worked for Jefferson Parish
14 Sheriff's Office in New Orleans, Louisiana, as a DNA analyst
15 and DNA quality manager.

16 **Q.** Back in September of 2025, what were your duties and
17 responsibilities?

18 **A.** I was a forensic biologist.

19 **Q.** And do you recall that around September 11th, you
20 received a request to do some DNA work at the request of the
21 State of Utah?

22 **A.** Yes.

23 **Q.** Could we display Exhibit -- State's Exhibit 30, which
24 is in evidence?

25 Ms. Oliver, do you recognize this report?

1 **A.** Yes, I do.

2 **Q.** And is this a report that you did as a result of some
3 DNA work that you did prior to September 15th?

4 **A.** Yes. This is the first of three reports that I
5 issued.

6 **Q.** Okay. The second one was marked and admitted in
7 evidence as Plaintiff's Exhibit 33. Could you bring that up,
8 please?

9 And do you recognize this report?

10 **A.** Yes, I do.

11 **Q.** And did you also author this report?

12 **A.** Yes.

13 **Q.** All right. And you mentioned a third report that has
14 not been marked by the state, but I've marked it as Oliver 157.

15 Could you bring that up to the witness but not the
16 audience, please?

17 **A.** Yes. I recognize this as well.

18 **Q.** This is a third report that you did dated December
19 11th, 2025, correct?

20 **A.** Correct.

21 **Q.** And does it relate back to the two prior reports, the
22 two that the state put into evidence?

23 **A.** Yes, it does.

24 MR. BURT: I move 157 into evidence. Oliver 157.

25 THE COURT: To the state?

1 MR. MCBRIDE: No objection.

2 THE COURT: Oliver 157, exhibit for defense, is
3 admitted into evidence.

4 (Defense Exhibit Oliver 157 received.)

5 Q. (BY MR. BURT) Could you please go back to Exhibit
6 No. 30? And I want to focus, if you would, on page 5. And
7 that first paragraph, would you highlight that, please?

8 Ms. Oliver, I want to represent to you that the state
9 had a witness, a non-DNA expert, read paragraph D of your
10 report here and read that same paragraph for each of the
11 samples you tested. And does paragraph D relate to something
12 called a "likelihood ratio"?

13 A. Yes, it does.

14 Q. All right. What was not read and I want to draw your
15 attention to is paragraph F. Do you see that paragraph?

16 A. Yes.

17 Q. And does that paragraph state your conclusion based
18 on the information that is contained in paragraph D?

19 A. Yes. It's the overall conclusion for the samples.

20 Q. The overall conclusion that you drew after doing your
21 examination?

22 A. Correct.

23 Q. As to the significance of this evidence, correct?

24 A. Correct.

25 Q. And could you read for us what that conclusion is?

1 **A.** "Based on this calculation, there is evidentiary
2 support for the inclusion of Tyler Robinson, Exhibit 7.1, as a
3 possible contributor to the major components of the DNA
4 profiles obtained from Exhibits 1.1 and 1.4."

5 **Q.** Now, you framed your conclusion there, your analysis,
6 in terms of possibilities, correct?

7 **A.** Correct.

8 **Q.** Could you unfocus that and go back on the page?

9 And for each of the subsequent analyses you did for
10 each sample, essentially you state the same conclusion in terms
11 of possible contributor. For instance, the next sample down,
12 1.2, where the state read paragraph D, amended paragraph F.
13 You state in F, "Based on this calculation, there is
14 evidentiary support for the inclusion of Tyler Robinson."
15 Correct? As a possible contributor?

16 **A.** Correct.

17 THE COURT: Mr. Burt, I just want to interrupt.

18 MR. BURT: Sure.

19 THE COURT: I was made aware of a question about the
20 media as it reflects this order. So the question was whether
21 audio could be transmitted, and my ruling covered the video
22 display of any exhibits. And so I just want to make sure
23 that's the understanding of all the parties, that the audio of
24 your portion discussing evidence is -- that you understand that
25 that's going to be captured by the camera and displayed, but

1 not any exhibits displayed. Is that your understanding?

2 MR. BURT: That is my understanding of the Court's
3 ruling, yes.

4 THE COURT: And to the state?

5 MR. MCBRIDE: Yes.

6 THE COURT: And to the media?

7 MS. URESK: Yes, your Honor. There might be a
8 concern about the actual monitors at counsel table and the
9 podium. I don't know if we need clarification on that.

10 THE COURT: Well, that's -- that's why I give my
11 notation in the morning that the parties are responsible to
12 monitor their monitors. And that's -- that's their -- as
13 they're entitled to view it, but they're responsible to ensure
14 that the monitors -- as the camera is picking up the courtroom,
15 it's directed not to focus on the monitors, but inevitable
16 capture may occur, and that's why that instruction is given.

17 MR. NEIMAN: Your Honor, Jeff Neiman on behalf of the
18 victim representative. We cannot see it in court from where we
19 are sitting, so I don't know if there is a way for us to view
20 the monitor.

21 THE COURT: I don't understand.

22 MR. MCBRIDE: It's not being published on this one.

23 MR. NEIMAN: It's not being published on the monitor
24 to the Court's right.

25 THE COURT: Right. The order of the Court based on

1 the sanction is no exhibits will be displayed.

2 MR. NEIMAN: In the courtroom in entirety?

3 THE COURT: As it stands right now, yes. That's
4 correct.

5 MR. NEIMAN: Well, I --

6 THE COURT: Please approach the lectern.

7 MR. NEIMAN: Your Honor, it's just hard for the
8 victim's family to be able to follow the evidence if everyone
9 but the victim's family is able to view the exhibits here in
10 court.

11 THE COURT: The -- thank you. I appreciate your
12 concern. This monitor is not on either, so it's only the
13 attorneys. The attorneys have a right to view what exhibits
14 are being displayed to make their motions, objections, and to
15 see it. The -- it is the Court's discretion on what's
16 displayed in the courtroom for publication, and the Court
17 issued a sanction given the events of yesterday, and that's the
18 Court's ruling.

19 MR. NEIMAN: Your Honor, I'd just ask the Court to
20 consider the victim has the right to be present obviously at
21 the hearing, and the presence without being able to see the
22 exhibits, again, it's our position is not meaningful.

23 THE COURT: Thank you. I appreciate your concerns.
24 Mr. Burt.

25 MR. BURT: Thank you. Could you redisplay Exhibit

1 30, please?

2 Q. (BY MR. BURT) And again, while he's doing that, that
3 same conclusion where you include the language --

4 Go back to that page, please, 5.

5 You use the term "there is evidentiary support" and
6 "possible contributor." I want to focus your attention on the
7 words "evidentiary support." We've had a prior witness testify
8 that -- from the FBI testify that they use a scale and they
9 characterize the support along the lines of strong -- are you
10 familiar with that type of a scale?

11 A. Yes.

12 Q. Does your agency employ that scale?

13 A. We can come to five conclusions at our agency, so
14 there can either be exclusion, limited support for exclusion,
15 uninformative, limited support for inclusion, and support for
16 inclusion.

17 Q. And I take it from what you just said, you don't use
18 these qualifiers strongly, the word "strongly include," things
19 of that nature?

20 A. Yes. We don't use a verbal scale at our laboratory.

21 Q. Is that a scientific phrase? When you talk about
22 some -- instead of saying that there's support for an
23 inclusion, you instead say there is strong support for the
24 conclusion [sic]?

25 A. So our laboratory doesn't use a verbal scale due to

1 the fact that they add subjective words to the front of the
2 word "support." It is our stance that the likelihood ratio
3 statistic, the number stands on its own. So we report the
4 likelihood ratio and either support or -- support for inclusion
5 or support for exclusion.

6 Q. Thank you. Would you go to page 8 of the report?
7 And highlight the very top of the first two sentences. You
8 included this language in your report, correct?

9 A. Correct.

10 Q. In fact, you included this language in all three of
11 your reports, referring to the conclusions conform with the
12 relevant Department of Justice policy on uniform language?

13 A. That's correct.

14 Q. All right. And why do you include that language in
15 all three of your reports?

16 A. It's standard language for our reports. All our
17 reports adhere to the DOJ ULTR statement.

18 Q. And could you go now to Exhibit Oliver 4 for the
19 witness only? Not admitted yet.

20 Are you familiar with this document, the "Department
21 of Justice Uniform Language for Testimony in Reports for
22 Forensic Autosomal DNA Examination Using Probabilistic
23 Genotyping Systems"?

24 A. Yes. I am.

25 Q. And would you go to page 4 of that document, please?

1 And the Court has heard some prior testimony about
2 this Department of Justice directive. What is ATF's -- what is
3 your understanding of what the qualifications and limitations
4 are that are required by this policy of the Department of
5 Justice? What are you -- what are you not supposed to be
6 saying in connection with the reports that you wrote in this
7 case?

8 **A.** There's a few things that the ULTR document states.
9 First, it states if you use a verbal scale, which we do not,
10 then you need to use the one dictated in the -- in the
11 document. This is in an effort to unify the language coming
12 out of DOJ laboratories. It also says that we cannot state
13 that our evidence is infallible, nor can we state that there is
14 an inconclusive result.

15 **Q.** Shall not state that it's infallible or have a zero
16 error rate, correct?

17 **A.** Correct.

18 **Q.** It also states, does it not, that you shall not
19 assert that a likelihood ratio of any magnitude provides an
20 absolute identification or source attribution of an individual
21 to an evidentiary sample?

22 **A.** Correct.

23 **Q.** And are your reports in conformity with that? You're
24 not stating or implying that anything you did here is asserting
25 an absolute identification of someone as the source of any of

1 the evidence that you examine, correct?

2 **A.** Correct. With forensic evidence, it's impossible to
3 state with 100 percent certainty anything. That's why we
4 report likelihood ratio to speak to that uncertainty with a
5 statistic.

6 **Q.** All right. And would you go to the next page of that
7 document?

8 This policy requires that you not state or use the
9 expressions "reasonable degree of scientific certainty,"
10 "reasonable scientific certainty," or similar assertions of
11 reasonable certainty. You didn't do that in any of your
12 reports, correct?

13 **A.** Correct.

14 **Q.** You're not asserting anything with respect to any
15 reasonable degree of scientific certainty?

16 **A.** Correct.

17 **Q.** Correct? Now, when --

18 You can take that down.

19 When did you first receive the assignment in this
20 case?

21 **A.** I would have to refer to my case record to know the
22 exact date.

23 **Q.** Do you have those in front of you?

24 **A.** I do not.

25 **Q.** Okay. Let me pull up Oliver 3 for the witness only.

1 And go to the third page.

2 Does that third page help refresh your memory on when
3 you may have received this case?

4 **A.** Yes. On September 12th, 2025.

5 **Q.** Okay. Is that when you first started doing work on
6 the case, do you think?

7 **A.** Yes, it is.

8 **Q.** Now, prior to doing work on the case, did you receive
9 permission from someone to consume any samples in the case?

10 **A.** Yes, I did.

11 **Q.** And could you go to page 15 of those case notes,
12 please? Again, for the witness only.

13 Do you recognize this e-mail?

14 **A.** Yes, I do.

15 **Q.** And can you tell me what the e-mail is and what
16 information it conveyed to you in connection with your
17 examination?

18 **A.** Yes. It's standard procedure at our laboratory that
19 when we receive a request, we request permission to consume
20 from the agent. We request that they reach out to an attorney
21 if one is assigned. In this case, we will not begin any work
22 on the case until we've received that permission to consume.
23 So this e-mail is us receiving permission to consume the
24 samples and move forward with testing.

25 **Q.** Now, does your policy have -- does your lab have a

1 policy for preserving samples for independent testing by the
2 defense?

3 **A.** Where possible, we will not consume samples where
4 it's possible.

5 **Q.** And that policy is a long-standing one not only in
6 your lab, but pretty much everywhere in forensic DNA analysis,
7 right?

8 **A.** That's correct.

9 **Q.** Goes back to 1996, does it not, when the national NRC
10 recommended a policy that samples be split wherever possible at
11 the front end of the analysis to allow for independent
12 examination?

13 **A.** Where possible, yes, that's correct.

14 **Q.** Right. And they did that because it was their
15 conclusion, was it not, that a wrongfully accused person's best
16 insurance against the possibility of being falsely incriminated
17 is the opportunity to have the testing repeated. Such an
18 opportunity should be provided whenever feasible?

19 **A.** Correct.

20 **Q.** Okay. Could you now go back to Exhibit 30? Page 8.
21 Were certain DNA samples consumed in your analysis?

22 **A.** Yes, they were.

23 **Q.** And for the record, are those listed on page 8 of
24 your report?

25 **A.** Yes, they are.

1 **Q.** Which samples were entirely consumed in your
2 analysis?

3 **A.** It would be Exhibits 1.4, 1.6, 1.9, 1.10, 1.12, 2.1,
4 3.1, 4.1, and 5.1.

5 **Q.** Okay. Then are there a number of samples listed
6 there above the report where you say the DNA extracts will be
7 retained, and then you list 1.1, 1.2, 1.3, 1.5, 1.7, 1.8, 1.13,
8 7.1, and 8.1?

9 **A.** Correct.

10 **Q.** Does that mean that the -- those are all swab
11 samples, correct?

12 **A.** They were swabs, yes.

13 **Q.** Does that mean -- does your report mean that you
14 consume the swabs but you have some liquid extract remaining as
15 to those samples?

16 **A.** Correct.

17 **Q.** Now, are all of the samples -- let's talk about the
18 samples in Exhibit -- Plaintiffs' Exhibit 30. Were all of the
19 samples you looked at there mixed samples?

20 **A.** Could I refer to my tables in my report?

21 **Q.** Sure. Go to page 2, please.

22 **A.** And can we go to page 3 and 4?

23 **Q.** 3 and 4, please.

24 **A.** With the exception of the known samples from the
25 known individual, that was a single source sample. But

1 otherwise, the evidence samples were all mixtures.

2 Q. And in many cases, they were mixtures of sometimes
3 four and five people, correct?

4 A. Correct.

5 Q. Now, when you look at mixtures such as the ones in
6 this case, you use terms like "major" and "minor contributor,"
7 right?

8 A. Correct.

9 Q. Is that language meant to convey that anything with
10 respect to activity of anybody who might be assigned to that
11 DNA way -- in other words, are you saying the person you label
12 as a major contributor was engaged in any sort of activity? Is
13 there any connection between the use of that language and
14 activity?

15 A. None of the testing that I performed could speak to
16 activity or what activity led to the deposition of the DNA.

17 Q. So nothing in your report -- if somebody reads that
18 and says, "Oh, this one says this person is a major
19 contributor," you're not commenting on anything about the
20 person's activity, correct?

21 A. Correct.

22 Q. And is it true also that there are also several other
23 limitations concerning the language of your report that it's
24 supported for courts and people who are reading the report to
25 understand?

1 **A.** I'm sorry. What was the question?

2 **Q.** Are there other limitations in addition to the one we
3 just reviewed that it's important to understand about the
4 language you use in your report?

5 **A.** In terms -- is there something specific that
6 you're --

7 **Q.** Yeah, there is.

8 Could you go to Bakker Exhibit 30? Page 1. For the
9 witness only.

10 Are you familiar with this publication?

11 **A.** Yes.

12 **Q.** This is a publication by the National Institute of
13 Standards and Technology called "Forensic DNA Interpretation
14 and Human Factors."

15 **A.** Correct.

16 **Q.** This is put together as a guidance document for
17 practitioners on what -- to simplify it, essentially what to
18 say and what not to say?

19 **A.** I don't know that I would call it a guidance
20 document. NIST is not a regulatory body for DNA testing. It
21 was a report that looked into forensic DNA reporting and
22 specific human factors that affect our testing. So they may
23 have had recommendations, but as far as them being a regulatory
24 body that's issuing guidelines, I wouldn't state that.

25 **Q.** Okay. That's fine.

1 Could you go to 136, please? 136. This is Bakker
2 30. Keep going. There we go. Right there. Wait. 135. I'm
3 sorry. And then scroll down to the next page.

4 So they're making recommendations here as to what --
5 how the report should be worded, correct?

6 **A.** Correct.

7 **Q.** Let me ask you whether you agree with some of these
8 limitations that are -- they call them caveats. They talk
9 about how you describe the number of contributors, and they say
10 the true number of contributors of DNA to an item can never be
11 known. Do you agree with that?

12 **A.** Yes.

13 **Q.** Okay. They also say -- let me ask one question
14 before I ask this one, which is: Do you use something called a
15 "reporting cap" in all three of your reports?

16 **A.** Yes. So for our likelihood ratio statistics, we cap
17 the statistic at 1 trillion. The actual number could be a lot
18 higher. It could be quintillion, octillion. We chose a
19 trillion because it has meaning to -- to people that can
20 understand what a trillion is. An octillion and a quintillion
21 gets a little high at that point, so we cap at 1 trillion.

22 **Q.** And they talk here, do they not, about how you convey
23 the idea of a reporting cap, and they say the report -- "the LR
24 reporting cap was chosen because of the limitation of
25 biostatistical modeling and independence assumptions of STR

1 loci." Do you agree that that's why the cap is chosen?

2 **A.** I believe we chose our cap for the reason I stated.

3 **Q.** Do you disagree with that statement in terms of why
4 the cap is chosen?

5 **A.** I'm not familiar with the paper that's referenced
6 there, so I would have to familiarize myself before I said I
7 agree or disagree.

8 **Q.** Fair enough. And then they also suggest that you
9 alert in your report that profile descriptors cannot be applied
10 to activity level issues. Do you agree with that?

11 **A.** Yes. So this is what you were stating about calling
12 it a "major contributor." It doesn't speak to the activity
13 that led to the DNA deposition.

14 **Q.** All right. "DNA profiles may be described as major
15 and minor. However, these descriptors should not be
16 interpreted in the context of a decision regarding the nature
17 or the mechanisms, actions, or timing that led to the
18 deposition of the DNA." You agree with that?

19 **A.** Correct. Yes.

20 **Q.** All right. And then the other sort of limitation,
21 "Convey that the DNA results cannot be interpreted as the
22 analyst providing an opinion regarding who the source of the
23 DNA is."

24 **A.** Yes. So this is, once again, we don't make source
25 attribution statements. We will say there's support for

1 inclusion, and then we back up that with a statistic.

2 **Q.** So from a scientific standpoint, you couldn't read
3 the paragraph that sets out the likelihood ratio in your
4 report, whatever the number, and then blast a headline in the
5 media "Mr. Robinson's DNA is found on this item." That's a
6 source attribution, is it not?

7 **A.** Correct. Yes.

8 **Q.** And that would not be scientifically defensible,
9 would it?

10 **A.** Correct.

11 **Q.** Okay. Another limitation they talk about on
12 likelihood ratios on the next page, please, 137. Likelihood
13 ratios cannot speak to the likelihood of a proposition, only to
14 the probability of the results given a pair of propositions.
15 Do you agree with that?

16 **A.** Yes.

17 **Q.** Explain that, because that's a little above my pay
18 grade in terms of understanding.

19 **A.** So a likelihood ratio statistic compares the
20 probability of the DNA profile of the evidence given two
21 competing hypotheses or two competing scenarios. Typically the
22 first is that the person of interest is included, and then the
23 exclusionary hypothesis would be that the person of interest is
24 excluded. So there's a random unknown, unrelated individual
25 contributing.

1 **Q.** And when they're elaborating on that point, they say
2 "A likelihood ratio indicates if and to what extent the DNA
3 analyst -- DNA analysis results support one proposition over
4 another. It is not possible on this basis alone to determine
5 which is the most probable proposition." Do you agree with
6 that?

7 **A.** Yes.

8 **Q.** Okay. And then the next limitation they suggest you
9 convey is that "convey the DNA statistics cannot imply
10 uniqueness within a population." Do you agree that that's a
11 legitimate limitation?

12 **A.** Yes.

13 **Q.** And explain what that means. Does that go back to
14 the issue of source? You can't assign a source to a DNA
15 sample?

16 **A.** Correct.

17 **Q.** Okay. It says you should delineate the meaning of a
18 verbal qualifier, but you didn't use one in this case, right?

19 **A.** Correct.

20 **Q.** Okay. Now, you mentioned that your testing cannot --
21 and correct me if I'm wrong. I don't want to mischaracterize
22 it. Your testing -- none of the testing in any of the three
23 reports can answer the question of how and when DNA got
24 deposited. Is that true?

25 **A.** That is true. DNA can't speak to the activity that

1 led to the deposition of the DNA.

2 Q. And the report says, with regard to that issue, "With
3 the increased sensitivity of DNA techniques and sophisticated
4 software, a DNA profile may be developed even when the
5 contributor of that DNA never touched the item or area that was
6 swabbed. Alternatively, a person's DNA may be present when
7 they were not involved in the crime." Do you agree with that?

8 A. Yes. Once again, I cannot speak to the activity.

9 Q. How -- can you explain how it's possible that a DNA
10 profile may be developed even when the contributor of that DNA
11 never touched the item or area that was swabbed?

12 A. So it's possible if, say, the pen that you're sitting
13 there using for the week, you, say, hand it off to the judge,
14 and the judge then touches it for a period of time, and then I
15 swab it, it doesn't speak to who handled it last. I could test
16 that. I could get both of your profiles. I wouldn't know
17 which person was the last person to handle that item.

18 Q. All right. And similarly, if you had a lot of DNA on
19 your hand, we shook hands, I then went to pick up an exhibit, a
20 gun, I touch the trigger of it, your DNA could be on that
21 trigger, right?

22 A. It is possible, yes.

23 Q. Okay. Even though you've never touched the gun?

24 A. Yes.

25 Q. And that's why, because of those possibilities, you

1 can't make any assessment of how or when DNA got deposited,
2 correct?

3 **A.** Correct.

4 **Q.** How long can DNA persist on an item?

5 **A.** DNA is quite stable over time. It can be broken down
6 due to environmental insults, so things like heat and humidity,
7 are known to break down DNA over time. But I couldn't give you
8 an exact number.

9 **Q.** Were certain of the samples that you tested in this
10 case degraded samples?

11 **A.** There was degradation present in some of those
12 samples.

13 **Q.** And what can cause degradation?

14 **A.** Like I said, there's environmental insults. Heat,
15 humidity.

16 **Q.** Now, the second report that you wrote had to do with
17 a Dremel item that was taken from Mr. Robinson's home?

18 **A.** Correct.

19 **Q.** And did -- did you request certain what are called
20 elimination samples in regard to items that were recovered from
21 this home?

22 **A.** Yes.

23 **Q.** Tell the Court what an elimination sample is as
24 opposed to a sample that relates to a -- what's called a POI,
25 person of interest?

1 **A.** So an elimination sample is a sample taken from a
2 known individual that it may be assumed that they could have
3 come into contact with it. If I were to, say, swab your
4 vehicle, then I would want your DNA sample as an elimination to
5 eliminate you in order to look for any additional DNA that may
6 be there.

7 **Q.** And you say they're assumed contributors because,
8 depending upon the location -- for instance, somebody's
9 house -- you would expect if there were multiple people in that
10 house, that perhaps everybody in the house could contribute to
11 a certain DNA result?

12 **A.** It's possible.

13 **Q.** So you'd want -- you'd want samples from all those
14 folks to see if they contributed to an item that would be
15 associated with a place where they congregated?

16 **A.** Correct.

17 **Q.** And I noticed from your case file that you also
18 requested, but I don't think you received, elimination samples
19 from agents who were involved in this case?

20 **A.** Correct.

21 **Q.** Why do you request those samples?

22 **A.** The type of testing we perform is quite sensitive,
23 and so it is a standard practice that we request elimination
24 samples from any of the investigators involved in order to
25 potentially eliminate them in case they could have contaminated

1 the evidence.

2 Q. Okay. Now, in Report No. 157 --

3 If you could bring that up, please. Oliver 157,
4 which has been admitted.

5 The elimination samples that you requested in
6 connection with items seized from Mr. Robinson's apartment were
7 from Amber Robinson, Matthew Robinson, and Lance Twiggs,
8 correct?

9 A. Correct.

10 Q. And that's because you had information those people
11 were associated with the house?

12 A. Correct.

13 Q. And when you tested or compared -- first of all, you
14 determined their DNA types, right?

15 A. Correct.

16 Q. Then you compared their types to what you found on
17 the evidence?

18 A. Correct.

19 Q. And for a certain number of those samples, you found
20 the presence of DNA of your elimination samples, not because
21 they were suspects, but because they were associated with the
22 premises, right?

23 A. There was support for inclusion of some of these
24 individuals, yes.

25 Q. Okay. And if you can scroll down to page 4, which is

1 the table I just want to review briefly with you. For
2 instance, Item No. 1.4, which was a swab from the rifle, you
3 use the elimination sample of Mr. Robinson's father, and you
4 found his DNA on that particular swab, correct?

5 **A.** I would say there was support for inclusion of
6 Matthew Robinson on the sample obtained from the swabs of the
7 bullets of the rifle.

8 **Q.** I'm glad you pointed that out. That's, again,
9 consistent with your other testimony. You're talking again
10 about support for inclusion as a possible contributor?

11 **A.** Correct. And there --

12 **Q.** And again, not -- not because he's a suspect, but
13 because he's associated with that premise?

14 **A.** Correct. And there would have been a likelihood
15 ratio statistic calculated to go along with that.

16 **Q.** Okay. Could you go to the next page?

17 Similarly, with respect to 1.6, you found again
18 Matthew Robinson on Swab No. 1.6 or a profile that indicated he
19 was a possible contributor?

20 **A.** There was support for inclusion of Matthew Robinson.

21 **Q.** Okay. The next page -- actually, go two pages to
22 page 7.

23 You found support for inclusion of Lance Twiggs on
24 swabs of buttons of a Dremel tool, correct?

25 **A.** Correct.

1 **Q.** And going back to what we were talking about before,
2 if a person named Lance Twiggs lived in that residence, came
3 into contact with Tyler Robinson, and then touched a button on
4 a Dremel tool, you'd expect Mr. Robinson's and Mr. Twiggs' DNA
5 to be on there, right? Or you could?

6 **A.** It's reasonable to assume that anyone living in the
7 household could have contributed to DNA found on an object
8 found in that household.

9 **Q.** And similarly, you found profiles to suggest support
10 for inclusion of Mr. Twiggs on other areas of the Dremel tool,
11 correct?

12 **A.** Correct.

13 **Q.** Okay. Now, the last area I want to ask you about is,
14 you're familiar with something called NGS?

15 **A.** Yes.

16 **Q.** What is NGS?

17 **A.** NGS stands for next generation sequencing. It's a
18 DNA technique that sequences your DNA, so it looks at the
19 individual sequence of your DNA.

20 **Q.** And is it true that in your field, that whole area of
21 NGS is something that's at the forefront of everybody's
22 attention? For instance, when you go to seminars and you look
23 at the presentation -- presentations, there's a lot of talk
24 about NGS, right?

25 **A.** That's correct. Yes. It's a newer technique.

1 **Q.** And is it being developed by ATF as a technique
2 that's going to be used or has been used?

3 **A.** Not at this time, no.

4 **Q.** And is there plans to do that?

5 **A.** Not at this time, no.

6 **Q.** Okay. Do you know if other labs have implemented it?

7 **A.** I believe there may be some laboratories in the
8 United States that have it in use, but I wouldn't have direct
9 knowledge of that.

10 **Q.** Now, you used a program in this case called STRmix,
11 correct?

12 **A.** Correct.

13 **Q.** And that's sold by a company in New Zealand? That
14 software?

15 **A.** Correct.

16 **Q.** Have they developed another program called STRmix
17 NGS?

18 **A.** I'm not aware of NGS software.

19 **Q.** Could you go to 156, Oliver 156?

20 Let me know when you're there. Are you aware that
21 STR -- the developers are selling a product called STRmix NGS?

22 **A.** I was not aware, no.

23 **Q.** Okay. Now, sequencing analysis is different than
24 what you did in this case, correct?

25 **A.** Correct.

1 **Q.** And how so?

2 **A.** As I said, sequencing is looking at the individual
3 sequence, the individual bases that make up your DNA, as
4 opposed to the testing that I'm performing, which is looking at
5 length variations. So STR testing, which is the testing I
6 perform, looks at areas of DNA that are known to be highly
7 variable between individuals, and there are areas where the DNA
8 sequence repeats itself over and over again. And depending on
9 who you are as an individual, you may have a different number
10 of repeats present at that location. So the testing we're
11 performing is looking at those length variations. There's a
12 distinction between say if you have 10 repeats versus 12
13 repeats.

14 **Q.** But you're not looking within those lengths to see
15 what the sequence of the DNA is?

16 **A.** Correct.

17 **Q.** And that's what this new technology is designed to
18 look at?

19 **A.** Correct.

20 **Q.** And the reason it's designed to look at that is
21 because it's been found that there are DNA areas that are
22 different in sequence even though they're the same length. Is
23 that true?

24 **A.** I think the reason for developing NGS software is to
25 add another tool to a forensic biologist's tool belt.

1 **Q.** Okay. Could you go to 154, please, for the witness
2 only?

3 You're familiar with this chart?

4 **A.** Yes.

5 **Q.** Okay. This lists all the alleles that you found for
6 all the testing in your -- in your 3 analysis, correct?

7 **A.** No. It looks like --

8 **Q.** No. You were right. 154. Yeah. This is one --
9 Okay. You're familiar with this chart, right?

10 **A.** I've reviewed the first page of this chart. I have
11 not reviewed the entirety.

12 **Q.** Sure. Go to the first page. This lists the alleles
13 that you found, correct?

14 **A.** For the known samples, yes.

15 **Q.** Okay. Now go to the second page. And is it true
16 that for the alleles of interest in this case, one of the
17 alleles of interest is at the D3 location, allele 17.

18 **A.** One of the locations that we look at on the DNA
19 strand is called D3. That's a location, yes.

20 **Q.** Right. And in this case, the 17 allele is important
21 because Mr. Robinson had a 17 allele, correct?

22 **A.** Correct.

23 **Q.** And some of the evidence had a 17 allele?

24 **A.** Correct.

25 **Q.** At that location?

1 **A.** Correct.

2 **Q.** So as I understand the way you do this, you look and
3 compare whether those are the same number basically?

4 **A.** I wouldn't state that's how we do our comparison. So
5 it's not just number matching. We're using STRmix, the STRmix
6 software, in order to perform an analysis of the software that
7 looks at the possibilities for a DNA profile and make
8 comparison to the knowns that way. We aren't using a chart and
9 just doing number matching.

10 **Q.** Yeah. And I wasn't suggesting you did, but you're
11 looking at the alleles and measuring the peaks, and it's a
12 fairly sophisticated process, correct?

13 **A.** Correct.

14 **Q.** But the bottom line is you're comparing alleles one
15 against another?

16 **A.** Correct.

17 **Q.** So if a person is a 17-17 and the evidence sample is
18 a 17-17, you're looking at that comparison?

19 **A.** Correct.

20 **Q.** And again measuring only length?

21 **A.** Correct.

22 **Q.** But it's true, is it not, that researchers have found
23 that that particular allele, the D317 allele, that there are
24 actually three different 17s, 17A, 17B, 17C?

25 **A.** So there's something known as isoalleles. What that

1 is is you may have in this case a 17 allele. The sequence
2 within that 17 allele is different. So two people may have a
3 17, but they may have a different sequence within their 17
4 allele.

5 Q. And it's been found that there is a 17A, a 17B, and a
6 17C, correct?

7 MR. MCBRIDE: Objection. Relevance to the probable
8 cause hearing. At this point I think we've once again gone
9 beyond probable cause. And based on Mr. Grunander's argument,
10 I would invoke his argument here and the case law that he
11 referenced, and I object to this question.

12 MS. HUNT: Let me withdraw the question and reframe
13 it and move beyond it.

14 THE COURT: All right. So I'll sustain the
15 objection. It will be reframed, and we'll go from there.

16 Q. (BY MS. HUNT) It's true, is it not, that at least
17 one, two, three -- five of the locations of interest in this
18 case researchers have found that the alleles that you were
19 looking at, these isoalleles, have different sequences but the
20 same length?

21 MR. MCBRIDE: Objection. Relevance. The witness has
22 testified she does not do sequencing analysis here, and that's
23 what the question is asking, is about sequencing analysis.

24 THE COURT: Counsel?

25 MR. BURT: The point, though, is that her testing

1 cannot distinguish between these isoalleles, and therefore it
2 goes to the weight of the comparisons.

3 THE COURT: But if she didn't do that?

4 MR. BURT: Yeah. That's the point, is that she
5 didn't do it; and therefore, she's not in a position to draw
6 conclusions.

7 THE COURT: Mr. McBride?

8 MR. MCBRIDE: That proffer is inaccurate, that she's
9 not able to draw conclusions because she did not do NGS or
10 sequencing analysis. She has testified that her lab and the
11 analysis she did here is not sequencing analysis. It's
12 something different. Whether or not she could do sequencing
13 analysis is irrelevant to the analysis that she did do.

14 If Mr. Burt wants to call an expert to say sequencing
15 analysis is better or something like that, that's fine. But
16 this expert does not do sequencing analysis. Therefore, the
17 line of questioning that goes into sequencing analysis is
18 irrelevant to her testimony.

19 MR. BURT: Let me see if I could lay further
20 foundation.

21 THE COURT: All right. So I'm going to sustain the
22 objection, and the question may be re-asked if counsel chooses.

23 **Q.** (BY MR. BURT) When you do your analysis using length
24 only, do you go by the rule that if any STR locus fails to
25 match when comparing the genotypes between two or more samples,

1 then the comparison of profiles between the questioned and
2 reference sample is usually declared a non-match regardless of
3 how many other loci match?

4 **A.** No. It's not quite that simple. An -- what you're
5 speaking of is an exclusion; is that correct?

6 **Q.** Yeah. Right.

7 **A.** So it's possible for DNA evidence to -- we spoke
8 about it's possible that DNA evidence be degraded. In a case
9 like that, there may be the potential that some of the profile
10 has what we call dropped out, so it's not present. In that
11 case, we wouldn't expect necessarily to have an inclusion or
12 exclusion at that location because there's no information
13 present there. So it's not quite as simple as, is every allele
14 in this chart present in the evidence? There's more to it than
15 that.

16 **Q.** If you had a difference in sequence between a known
17 and a question across many loci, would you exclude the person?

18 **A.** It depends --

19 MR. MCBRIDE: Once again, objection, your Honor.
20 We're going back into sequencing, which was not the analysis
21 done in this case.

22 THE COURT: Mr. Burt?

23 MR. BURT: Again, your Honor, if there could be an
24 exclusion based on this and the testing was not done, I think
25 that is relevant.

1 THE COURT: But as it relates to this witness and her
2 personal knowledge, I -- I'm not seeing that tie-in as it
3 relates to her.

4 MR. BURT: All right. Let me move on then.

5 THE COURT: So I'll sustain the objection.

6 **Q.** (BY MR. BURT) Now, you said that all the samples you
7 looked at in that one report were mixtures, correct?

8 **A.** Correct.

9 **Q.** And the number you get in the likelihood ratio
10 depends on how many contributors you estimate, right? The
11 number is going to vary if you say it's -- I think it's a
12 mixture of two people versus I think it's a mixture of five
13 people?

14 **A.** It's not necessarily the number of contributors. The
15 likelihood ratio speaks to the weight of the evidence. And so
16 it's comparing known individuals to the unknown sample. It
17 could be a low number and be a single source sample. It could
18 be a high number and be a four-person mixture. It's not
19 necessarily directly correlated with the number of
20 contributors.

21 **Q.** Let me ask if you agree with this. This is from the
22 NIST mixture study. "A likelihood ratio numeric value is not a
23 measurement of the physical quantity." Do you agree with that?

24 **A.** Correct.

25 **Q.** "Rather, it is a ratio of probabilities in the

1 opinion of the expert assessing the likelihood ratio and is
2 dependent on a specific propositions used to formulate it and
3 also on the individual making the assessment."

4 **A.** Correct. Yes. I agree.

5 **Q.** And does the final likelihood ratio depend on the
6 number of contributors you assume?

7 **A.** No, it does not.

8 **Q.** It has no affect whatsoever?

9 **A.** It can have an affect. It's possible. It's possible
10 multiple other factors be contributed to the likelihood ratio.

11 **Q.** Is it somehow difficult to figure out how many
12 contributors there are in a sample?

13 **A.** I guess -- I would say that I use my training,
14 education, and experience in order to determine the number of
15 contributors present in a profile.

16 **Q.** Well, I noticed throughout your report, you use the
17 phrase -- for instance, with regard to the 1.2 sample. "The
18 profile consistent with at least five -- at least five
19 contributors, at least one of which is male." And for 1.1, you
20 say "The profile is consistent with at least four
21 contributors." I assume by the word "at least," you're
22 signaling that it could be more?

23 **A.** Correct.

24 **Q.** And as a number of people to a mixture increases, the
25 difficulty in sorting out that mixture increased as well,

1 correct?

2 **A.** Correct.

3 **Q.** I noticed in your standard operating procedure
4 there's some guidance on interpreting three-person mixtures.
5 You're familiar with that, right?

6 **A.** Yes.

7 **Q.** And it says -- and correct me if I'm wrong --
8 approximately 70 percent of four-person mixtures present as two
9 or three-mixtures based solely on number of alleles present?

10 **A.** It's possible for them to present, yes.

11 **Q.** Well, it doesn't say it's possible; it says, for
12 example, approximately -- "in all cases, assuming a mixture is
13 a result of the combination of three people must be done with
14 caution. For example, approximately 70 percent of four-person
15 mixtures present as two or three-person mixtures based solely
16 on number of alleles present."

17 **A.** You said you're referencing my SOP?

18 **Q.** Yes.

19 **A.** Is it possible for me to take a look at it?

20 **Q.** Sure.

21 MR. MCBRIDE: Your Honor, I'm going to object at this
22 point. The point defense counsel is getting at is made in the
23 last answer, which is that the difficulty of sorting out
24 mixtures increases as the number of contributors increases.
25 That's all understood, but that has nothing to do with the

1 probable cause determination. Even if it's difficult, the
2 inferences in the evidence is weighed in favor of the state.
3 The Court cannot weigh the difficulty in determining this
4 evidence. Is it fair for a trier of fact, a jury? Sure, it
5 is. But we're now getting into weight issues that are relevant
6 for a jury but not for this Court.

7 THE COURT: Thank you. Mr. Burt.

8 MR. BURT: He's implying it's going to be an extended
9 discussion. I have one question, and she wants to look at her
10 manual to make sure it's in there. So -- and then I'm done.

11 THE COURT: I'll allow the question. So I'll
12 overrule the objection. She may review the material, and the
13 question can be rephrased.

14 MR. BURT: So could you bring up 1 -- Exhibit Oliver
15 148?

16 **Q.** (BY MR. BURT) This is your SOP document, correct?

17 **A.** Correct.

18 **Q.** And then go to page 83.

19 Did I read that correctly?

20 **A.** Yes.

21 **Q.** And so it's true, is it not, that approximately 70
22 percent of four-person mixtures present as two or three-person
23 mixtures?

24 **A.** It's possible.

25 MR. BURT: Thank you. That's all I have.

1 THE COURT: Thank you. We've been going for a bit.
2 And depending on how much cross, I'm trying to decide if a
3 break is warranted or if, Mr. McBride, you wish -- your cross
4 is limited? Again, not trying to say which way you should go.
5 I'm just trying to weigh whether we should take a break.

6 MR. MCBRIDE: I will probably be -- excuse me. I
7 will probably be 20 minutes.

8 THE COURT: All right. Let's just -- let's just keep
9 going. And then at that point, we can take a break. Thank
10 you. Mr. McBride.

11 CROSS-EXAMINATION

12 BY MR. MCBRIDE:

13 Q. Good morning.

14 A. Good morning.

15 Q. Is your lab accredited?

16 A. Yes, it is.

17 Q. What does that mean?

18 A. So our laboratory goes through a voluntary
19 accreditation process where an external third party comes in
20 and audits our laboratory to a set of standards. Specifically
21 the ATF laboratory is accredited, and specifically the DNA
22 section of the ATF laboratory is accredited to two sets of
23 standards. One is an international set of standards called ISO
24 17025 for testing laboratories. And additionally, a
25 DNA-specific set of standards put forth by the FBI.

1 **Q.** Does the accreditation require that the methodologies
2 you use be validated?

3 **A.** Yes.

4 **Q.** The methodologies used in this case have been
5 accepted by Courts across the country, correct?

6 **A.** Correct.

7 **Q.** Does the accreditation require that forensic
8 biologists like yourself satisfy certain qualification
9 standards?

10 **A.** Yes. We're required to perform competency testing
11 prior to participating in case work. And additionally, we
12 participate in twice-a-year proficiency testing.

13 **Q.** And do you satisfy the competency and qualification
14 standards required by accreditation?

15 **A.** Yes.

16 **Q.** And at the time you did the testing in this case, did
17 you satisfy those standards?

18 **A.** Yes.

19 **Q.** Moving to your opinions, where on the firearm did you
20 find evidentiary support for the inclusion of Tyler Robinson?

21 **A.** There were several locations. I'd have to refer to
22 my report.

23 **Q.** Okay. Would you look at your report? And this is,
24 it looks, like report number -- Exhibit No. 30. We can pull
25 that up just for the witness. We had it for a minute here.

1 Where'd it go? Okay. If we could go to page number 2, please.

2 Will you just list off the areas of that firearm
3 where there was support -- evidentiary support for inclusion of
4 Tyler Robinson?

5 **A.** The swabs of the stock and grips of rifle, the swabs
6 of the butt plate of rifle, the swabs of the trigger and
7 trigger guard of rifle with possible ridge detail/smudging, the
8 swabs of the bolt of the rifle with possible ridge
9 detail/smudging, and the swabs of the fore-end of the rifle.

10 **Q.** We can go to page 3.

11 **A.** The swabs of the barrel of the rifle with possible
12 ridge detail/smudging, the swabs with possible ridge
13 detail/smudging on the optical accessory.

14 **Q.** And page 4?

15 **A.** The swabs of the protected underside of the receiver
16 of the rifle after disassembly, the swabs of one .30-06
17 cartridge case, the swabs of one .30-06 cartridge, and the
18 swabs of one .30-06 cartridge.

19 **Q.** I want to ask you about a couple of those
20 conclusions.

21 Let's look at page 5, please.

22 And calculation number 3, Exhibit 1.3, do you know
23 where that swab was taken from?

24 **A.** I'd have to refer back to page 2.

25 **Q.** Can we refer back to page 2, please, Kimberlie?

1 Thank you.

2 **A.** The 1.3 is the swabs of the trigger and trigger guard
3 of the rifle.

4 **Q.** Going back to page 5. And we've had some talk --
5 some testimony from you and some questions for you about the
6 likelihood ratios. What was your conclusion as to the
7 likelihood ratio that you analyzed in this question,
8 calculation number 3?

9 **A.** For this exhibit, the DNA profile was at least 1
10 trillion times more likely if it originated from Tyler Robinson
11 as the major component and three unknown, unrelated individuals
12 than if it originated from four unrelated individuals.

13 **Q.** You say at least 1 trillion times more likely. So it
14 could be a much higher number than 1 trillion. Is that
15 accurate?

16 **A.** It's possible.

17 **Q.** But the protocols in your laboratory say you cap that
18 at the number 1 trillion. Is that right?

19 **A.** Correct. We would not report a number higher than 1
20 trillion.

21 **Q.** And it looks like you also did a probability
22 statistic as well in paragraph E. Is that right?

23 **A.** Correct. It's another way of stating the likelihood
24 ratio statistic.

25 **Q.** And will you state your findings you made here in

1 paragraph E? And that's on page 6.

2 **A.** The probability of an unrelated individual in the
3 population who has not contributed DNA to the sample yielding
4 this level of support is less than 1 in a trillion.

5 **Q.** And same question there. The trillion number, it
6 could be far less than that, but you stop your calculations of
7 the statistics at a trillion; is that right?

8 **A.** Correct.

9 **Q.** Let us move to page 7 with regard to statistical
10 analysis calculation number 7. Now, do you remember what
11 1.3 -- 1.13 and 2.1 are?

12 **A.** I'd have to refer back to page 3 I believe.

13 **Q.** If you could jump to page 3. Thank you, Kimberlie.

14 **A.** Page 4. I'm sorry.

15 **Q.** Page 4.

16 **A.** So 1.13 is the swabs of the protected underside of
17 the receiver of the rifle after disassembly, and 2.1 is the
18 swabs of one .30-06 cartridge case.

19 **Q.** Now, did you do the swabs themselves?

20 **A.** I did not.

21 **Q.** And 2.1 is a cartridge case; is that right?

22 **A.** Correct.

23 **Q.** And what's the difference between a cartridge case
24 and a cartridge?

25 **A.** So a cartridge is unfired. A cartridge case has been

1 fired.

2 **Q.** Let's jump back to page 7. And what was your
3 conclusion with regard to -- well, first of all, why do you
4 group these two together, Exhibits 1.13 and 2.1, in your
5 conclusions here?

6 **A.** They were both mixtures of two individuals, and they
7 both yielded a likelihood ratio of the same magnitude so they
8 can be grouped together.

9 **Q.** Okay. It's not that they were tested together?

10 **A.** Correct.

11 **Q.** It's just that the results were of the same
12 magnitude, so they were reported together; is that right?

13 **A.** Correct.

14 **Q.** All right. What was your conclusion as it relates to
15 both of these as to the likelihood ratio?

16 **A.** The DNA profiles are at least 1 trillion times more
17 likely if they originated from Tyler Robinson as the major
18 contributor and an unknown, unrelated individual than if they
19 originated from two unknown, unrelated individuals.

20 **Q.** And did you make a conclusion here as well about the
21 probability statistic?

22 **A.** Yes. So the probability of an unrelated individual
23 in the population who has not contributed DNA to these samples
24 yielding this level of support, so meaning yielding this
25 likelihood ratio, is less than 1 in a trillion.

1 MR. MCBRIDE: Nothing else.

2 THE COURT: Mr. Burt?

3 REDIRECT EXAMINATION

4 BY MR. BURT:

5 Q. The 1.3 sample is described as swabs of trigger and
6 trigger guard. Right?

7 A. Correct.

8 Q. You didn't do the swabs, but am I correct that you
9 have no way of knowing which part was from the trigger and
10 which part was from the trigger guard?

11 A. Correct. So they were swabbed together, so I
12 wouldn't be able to say where the DNA came from.

13 Q. And that's one of the samples that was degraded,
14 correct?

15 A. There were signs of degradation present in that
16 sample, yes.

17 Q. And you said with regard to that sample that that was
18 a sample consistent with at least four contributors, right?

19 A. Correct.

20 Q. And did the what you term the "major profile" have
21 the largest amount of degradation in that sample?

22 A. There was -- yes.

23 Q. And you can't tell us anything about when the DNA was
24 deposited on the trigger guard or the trigger, correct?

25 A. Correct.

1 **Q.** You can't tell us anything about whether -- when you
2 say it's at least four, it could be five, six, or seven people
3 with DNA on that trigger or trigger guard, correct?

4 **A.** Correct. Which is why we have the major contributor
5 that is suitable for comparison and the minor contributor is
6 not suitable for comparison due to that complexity.

7 **Q.** And again, major/minor just has to do with the levels
8 of DNA you're seeing; it has nothing to do with someone being
9 engaged in activity that is major in relation to the minor
10 contributor?

11 **A.** Yes. So the major contributor is the majority of the
12 DNA contributed to that sample.

13 **Q.** Okay. And some of these samples, you have major
14 contributors of more than one person, right?

15 **A.** Correct.

16 **Q.** So for sample 1.1, swabs of stock, you have two major
17 profiles, and there are at least four contributors on that
18 sample, right?

19 **A.** Can I refer to my report?

20 **Q.** Sure. It's Exhibit 30. Plaintiff's 30.

21 **A.** You said Exhibit 1.1?

22 **Q.** Yes.

23 **A.** Yes. It was a mixture of four individuals. There
24 were two major contributors.

25 **Q.** Okay. And again, with regard to all these samples,

1 no way of knowing when or how the DNA got on those samples,
2 correct?

3 **A.** Correct.

4 **Q.** You reference another statistic in your report which
5 is the statistic related to paragraph E, I guess?

6 **A.** Correct.

7 **Q.** Is that what's called the random match probability
8 statistic? Or is that something else?

9 **A.** It itself is not a random match probability
10 statistic. It is a way to represent the likelihood ratio
11 similar to a random match probability.

12 **Q.** But it's still a likelihood ratio computation, right?

13 **A.** Correct. It's based off the likelihood ratio
14 computation.

15 **Q.** And it's still subject to all the limitations we've
16 talked about?

17 **A.** Correct.

18 **Q.** Can't attribute it to any person, can't state is
19 infallible, can't state there's a zero error rate, and you
20 can't state that it is a source connected with any one person,
21 correct?

22 **A.** So part of not being able to state source attribution
23 is the reason we report the likelihood ratio statistic. It
24 is -- speaks to the weight of the evidence. And so to -- yes,
25 we can't do a source attribution, and we report that statistic

1 and address that uncertainty that way.

2 Q. And address the uncertainty along with the other
3 limitations we talked about?

4 A. Correct.

5 MR. BURT: Thank you. That's all I have.

6 THE COURT: Thank you. Anything further for this
7 witness?

8 MR. MCBRIDE: No.

9 THE COURT: All right. May this witness be excused?

10 MR. MCBRIDE: Yes.

11 MR. BURT: Yes.

12 THE COURT: All right. Thank you. You may step
13 down.

14 Anything further from the defense?

15 MR. BURT: No. We have no further witnesses, your
16 Honor.

17 THE COURT: All right. Returning to prosecution.
18 Anything further?

19 MR. GRUNANDER: No, Judge. We have no rebuttal
20 evidence to present at this hearing. The state has no rebuttal
21 evidence to present at this hearing. However, before we break,
22 there is the matter that was discussed yesterday with respect
23 to publishing in the courtroom Exhibit 12.1 so that the
24 victim's family can observe that.

25 THE COURT: Thank you.

1 All right. Do the parties wish to be heard as it
2 relates to this briefly? And then the Court will issue its
3 ruling.

4 MS. VISSER: Your Honor, I actually just want to make
5 a quick record. We have advised Mr. Robinson of his right to
6 testify at this hearing, and he is choosing to take our advice
7 and not testify.

8 THE COURT: Is that correct, Mr. Robinson? I note
9 that he's nodding in the affirmative.

10 Thank you, Ms. Visser.

11 All right. In regards to the outstanding issue about
12 the publication of State's Exhibit 12.1, to the courtroom only,
13 to persons here, any further input from any of the parties
14 before the Court issues its ruling?

15 MR. NEIMAN: Your Honor, Jeff Neiman on behalf of the
16 victim. My understanding is you ruled yesterday that you were
17 going to play it, that you did grant our request.

18 THE COURT: Thank you.

19 MR. GRUNANDER: Judge, I might simply add, given the
20 Court's ruling this morning with respect to displaying
21 exhibits, we may want to make a record with the live-streaming
22 folks here that it's not going to be published.

23 THE COURT: Thank you. All right. Nothing further
24 from any of the parties?

25 I'm just updating these notes. All right.

1 The Court wishes to readdress yesterday's ruling. In
2 light of this morning's sanction as it relates to Exhibit 16,
3 the Court separately addressed that incident and imposed a
4 sanction on the record. Having considered all applicable
5 public access, fair trial, privacy, and victims' rights
6 interests, the Court adheres to its prior ruling. The Court
7 finds that temporary limiting live stream to audio only while
8 Exhibit 12.1 is displayed is necessary to prevent the
9 inadvertent publication of the exhibit from being transmitted
10 to outside the courtroom. And no broader -- and is taking the
11 least restrictive means to accomplish what is being requested.
12 Accordingly, Exhibit 12.1 may be viewed by all persons
13 physically present in the courtroom including victim
14 representative Ms. Kirk in her capacity as the victim
15 representative.

16 The same in-court viewing rules applies to all
17 parties and courtroom attendees. And that is the ruling of the
18 Court. Let's go ahead and proceed to that.

19 To the state. So I'll -- can the camera operator let
20 me know when we're switched to an audio only? We are? Okay.
21 All right.

22 And as it's switched to audio only, to the state.
23 Now, my understanding, there's no audio on this surveillance --
24 on 12.1. Is that correct? All right. All right. So let's go
25 ahead and play that.

1 And I'm going to rule that the -- this also applies
2 to the still photographer. It cannot be captured, the screen,
3 in any way. I noted the video recording, but I intend as well
4 as no still capture of any of the monitors during the
5 publication of 12.1.

6 All right. And to the state, just let me know. If
7 you're ready, let's go ahead and play it now.

8 (Video played.)

9 THE COURT: All right. That concludes the playing of
10 State's Exhibit 12.1. Video transmission may resume. Just let
11 me know when that is live. All right. Thank you.

12 Does either party need the benefit of the record?

13 MR. GRUNANDER: The state does not, Judge.

14 MS. NESTER: No, your Honor.

15 THE COURT: All right. So this preliminary hearing
16 is continued to September 1st at 10:00 a.m. for an in-person
17 hearing. The Court will allocate up to four hours total for
18 argument. That's encompassing both parties.

19 Does the defense request that Mr. Robinson be
20 physically present for that hearing?

21 MS. NESTER: Yes, your Honor.

22 THE COURT: All right. We'll make the according --
23 thank you.

24 The Court appreciates the professionalism, civility,
25 and respect shown by counsel, the parties, and all persons in

1 attendance throughout these proceedings. As there are no
2 matters -- no further matters before the Court, this proceeding
3 is adjourned until September 1st at 10:00 a.m. Good afternoon
4 to you all.

5 (Proceedings concluded at 11:57 a.m.)
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1 STATE OF UTAH)
2)
COUNTY OF SALT LAKE)

3 I, PHOEBE S. MOORHEAD, Certified Shorthand
4 Reporter for the State of Utah, certify:

5 That I received the audio recording and
6 transcribed it to the best of my ability into typewriting; that
7 a full, true, and correct transcription of said audio recording
8 so recorded and transcribed is set forth in the foregoing
9 pages.

10 I FURTHER CERTIFY that I am neither counsel
11 for nor related to any party to said action nor in anywise
12 interested in the outcome thereof.

13 Certified and dated this 12th day of July,
14 2026.

15
16 
17
18 PHOEBE S. MOORHEAD, RDR, CRR
19 Certified Shorthand Reporter
20 for the State of Utah
21
22
23
24
25

1	83:3	8	adhered [3] - 16:22, 17:23, 26:11 adheres [2] - 27:18, 81:6 adjourned [1] - 83:3 adjust [1] - 6:3 adjusting [1] - 33:15 adjustment [1] - 26:1 admitted [12] - 12:10, 14:7, 14:17, 21:11, 24:22, 24:23, 25:4, 29:10, 35:6, 36:3, 41:19, 56:4 advance [1] - 10:3 advice [1] - 80:6 advised [1] - 80:5 affect [3] - 48:22, 67:8, 67:9 afford [1] - 12:20 afternoon [1] - 83:3 age [1] - 15:17 agency [2] - 40:12, 40:13 agent [1] - 44:20 agents [1] - 55:19 ago [1] - 25:11 agree [14] - 10:12, 49:7, 49:11, 50:1, 50:7, 50:10, 50:18, 51:15, 52:5, 52:10, 53:7, 66:21, 66:23, 67:4 agrees [1] - 27:10 ahead [5] - 20:14, 28:10, 81:18, 81:25, 82:7 Alcohol [1] - 34:5 alert [1] - 50:9 alleged [1] - 31:10 allele [10] - 61:17, 61:20, 61:21, 61:23, 62:23, 63:1, 63:2, 63:4, 65:13 alleles [9] - 61:5, 61:12, 61:16, 61:17, 62:11, 62:14, 63:18, 68:9, 68:16 allocate [1] - 82:17 allow [4] - 26:7, 28:16, 45:11, 69:11 allowed [2] - 12:6, 29:4 almost [2] - 25:19, 26:21 alone [1] - 52:4 alternative [6] - 22:9, 22:10, 22:11, 24:1, 27:19, 30:10 alternatively [1] - 53:6 Amber [1] - 56:7 amended [1] - 37:12 amount [1] - 76:21 analyses [1] - 37:9 analysis [24] - 26:25, 27:17, 37:5, 45:6, 45:11, 45:21, 46:2, 52:3, 59:23, 61:6, 62:6, 63:22, 63:23, 64:10, 64:11, 64:13, 64:15, 64:16, 64:17, 64:23, 65:20, 74:10 analyst [3] - 34:14, 50:22, 52:3 analyzed [1] - 73:7						
1 1 [12] - 48:8, 49:17, 49:21, 69:14, 73:9, 73:13, 73:14, 73:18, 73:19, 74:4, 75:16, 75:25 1.1 [5] - 37:4, 46:7, 67:19, 77:16, 77:21 1.10 [1] - 46:3 1.12 [1] - 46:3 1.13 [4] - 46:7, 74:11, 74:16, 75:4 1.2 [3] - 37:12, 46:7, 67:17 1.3 [5] - 46:7, 72:22, 73:2, 74:11, 76:5 1.4 [3] - 37:4, 46:3, 57:2 1.5 [1] - 46:7 1.6 [3] - 46:3, 57:17, 57:18 1.7 [1] - 46:7 1.8 [1] - 46:7 1.9 [1] - 46:3 10 [2] - 4:1, 60:12 100 [1] - 43:3 10:00 [2] - 82:16, 83:3 10:06 [1] - 20:3 11:57 [1] - 83:5 11th [2] - 34:19, 35:19 12 [1] - 60:12 12.1 [7] - 79:23, 80:12, 81:8, 81:12, 81:24, 82:5, 82:10 12th [1] - 44:4 135 [1] - 49:2 136 [2] - 49:1 137 [1] - 51:12 148 [1] - 69:15 15 [2] - 21:6, 44:11 154 [2] - 61:1, 61:8 156 [2] - 59:19 157 [7] - 35:14, 35:24, 36:2, 36:4, 56:2, 56:3 15th [1] - 35:3 16 [8] - 12:9, 20:19, 20:23, 21:2, 21:10, 27:9, 81:2 16.1 [1] - 12:10 16th [1] - 21:7 16th/March [1] - 16:12 17 [8] - 61:17, 61:20, 61:21, 61:23, 63:1, 63:2, 63:3 17-17 [2] - 62:17, 62:18 17025 [1] - 70:24 17A [2] - 62:24, 63:5 17B [2] - 62:24, 63:5 17C [2] - 62:24, 63:6 17s [1] - 62:24 17th [3] - 16:10, 16:12 1995 [1] - 30:7 1996 [1] - 45:9 1st [8] - 22:18, 22:20, 23:3, 24:3, 28:4, 28:10, 82:16,	2 2 [4] - 46:21, 72:1, 72:24, 72:25 2.1 [5] - 46:3, 74:11, 74:17, 74:21, 75:4 20 [1] - 70:7 2000 [1] - 30:15 2006 [1] - 30:19 2010 [1] - 31:1 2020 [1] - 31:6 2025 [3] - 34:16, 35:19, 44:4 2026 [3] - 4:1, 21:4, 21:7 24 [1] - 20:18 251403576 [1] - 4:5	8 8 [3] - 41:6, 45:20, 45:23 8.1 [1] - 46:8 83 [1] - 69:18	9 9:16 [1] - 4:3 9:39 [1] - 20:3 9:45 [1] - 20:1	A a.m [6] - 4:3, 20:3, 82:16, 83:3, 83:5 ability [1] - 8:8 able [9] - 14:24, 15:25, 24:9, 39:8, 39:9, 39:21, 64:9, 76:12, 78:22 absolute [2] - 42:20, 42:25 accepted [1] - 71:5 access [1] - 81:5 accessory [1] - 72:13 accomplish [1] - 81:11 accordance [1] - 5:13 according [1] - 82:22 accordingly [1] - 81:12 accreditation [4] - 70:19, 71:1, 71:7, 71:14 accredited [3] - 70:15, 70:21, 70:22 accurate [4] - 12:23, 21:18, 21:20, 73:15 accused [1] - 45:15 acknowledge [2] - 6:12, 8:9 act [1] - 17:10 acting [1] - 11:18 actions [5] - 9:18, 13:9, 19:4, 23:8, 50:17 activities [1] - 5:24 activity [11] - 47:10, 47:12, 47:14, 47:16, 47:20, 50:10, 50:12, 52:25, 53:8, 77:9 actual [2] - 38:8, 49:17 add [3] - 41:1, 60:25, 80:19 addition [3] - 13:4, 21:7, 48:2 additional [3] - 6:2, 29:12, 55:5 additionally [2] - 70:24, 71:11 address [10] - 5:4, 7:23, 10:12, 10:23, 11:2, 20:7, 28:10, 30:9, 79:1, 79:2 addressed [7] - 6:24, 10:6, 10:13, 10:24, 12:14, 12:18, 81:3 addressing [1] - 8:14 adequate [1] - 22:10 adhere [1] - 41:17	3 3 [10] - 20:20, 43:25, 46:22, 46:23, 61:6, 72:10, 72:22, 73:8, 74:12, 74:13 3.1 [1] - 46:4 30 [12] - 24:12, 24:25, 34:23, 36:6, 40:1, 45:20, 46:18, 48:8, 49:2, 71:24, 77:20 30-06 [4] - 72:16, 72:17, 72:18, 74:18 305 [3] - 22:4, 23:25, 27:15 33 [1] - 35:7 34 [1] - 24:25	4 4 [8] - 41:18, 41:25, 46:22, 46:23, 56:25, 72:14, 74:14, 74:15 4.1 [1] - 46:4	5 5 [4] - 36:6, 40:4, 72:21, 73:4 5.1 [1] - 46:4	6 6 [1] - 74:1	7 7 [5] - 16:13, 57:22, 74:9, 74:10, 75:2 7.1 [2] - 37:2, 46:8 70 [3] - 68:8, 68:14, 69:21 702 [1] - 29:19 78 [1] - 21:5

answer [2] - 52:23, 68:23
anticipate [1] - 6:6
apartment [1] - 56:6
apologize [1] - 5:15
Appeals [2] - 30:14, 31:1
appearances [1] - 4:6
appeared [1] - 20:20
applicable [1] - 81:4
applied [1] - 50:9
applies [3] - 5:24, 81:16, 82:1
appreciate [11] - 10:4, 10:7, 11:1, 11:2, 13:22, 17:20, 18:8, 20:7, 26:21, 39:11, 39:23
appreciates [2] - 7:18, 82:24
approach [2] - 5:6, 39:6
appropriate [5] - 10:19, 11:24, 13:8, 23:4, 28:2
appropriateness [1] - 11:18
April [1] - 21:4
area [4] - 53:5, 53:11, 58:13, 58:20
areas [6] - 29:19, 58:10, 60:6, 60:7, 60:21, 72:2
argument [5] - 26:20, 28:10, 63:9, 63:10, 82:18
arguments [3] - 19:7, 26:14, 27:6
aspects [1] - 25:13
assert [1] - 42:19
asserting [4] - 32:14, 32:16, 42:24, 43:14
assertions [1] - 43:10
assessing [1] - 67:1
assessment [2] - 54:1, 67:3
assign [1] - 52:14
assigned [2] - 44:21, 47:10
assignment [1] - 43:19
associated [4] - 55:15, 56:11, 56:21, 57:13
assume [4] - 24:22, 58:6, 67:6, 67:21
assumed [2] - 55:2, 55:7
assuming [2] - 30:11, 68:12
assumptions [1] - 49:25
astutely [1] - 15:7
ATF [7] - 24:21, 34:9, 34:12, 34:13, 59:1, 70:21, 70:22
ATF's [1] - 42:2
attendance [3] - 7:3, 20:8, 83:1
attendeess [1] - 81:17
attending [1] - 6:19
attention [5] - 13:17, 20:22, 36:15, 40:6, 58:22
attorney [4] - 4:8, 17:7,

24:12, 44:20
attorneys [4] - 17:16, 39:13
attribute [1] - 78:18
attribution [5] - 42:20, 50:25, 51:6, 78:22, 78:25
audible [1] - 7:10
audience [1] - 35:16
audio [7] - 22:5, 37:21, 37:23, 81:7, 81:20, 81:22, 81:23
audits [1] - 70:20
author [2] - 32:22, 35:11
authority [1] - 29:21
authorized [2] - 6:22, 14:23
authorizing [1] - 22:12
Autosomal [1] - 41:22
available [2] - 16:7, 21:3
avoid [2] - 5:1, 24:17
aware [6] - 23:19, 29:23, 37:19, 59:18, 59:20, 59:22

B

Bakker [2] - 48:8, 49:1
balance [2] - 23:25, 25:17
balanced [3] - 8:22, 23:15, 27:4
balancing [2] - 20:9, 26:6
Ballard [1] - 4:9
bar [1] - 31:8
barrel [1] - 72:11
bars [1] - 30:8
base [1] - 30:22
baseball [1] - 22:7
Based [1] - 37:13
based [10] - 19:24, 21:18, 36:17, 37:1, 38:25, 63:9, 65:24, 68:9, 68:15, 78:13
bases [1] - 60:3
basis [1] - 52:4
beat [2] - 14:21, 25:19
became [1] - 23:8
becomes [1] - 28:6
began [1] - 15:1
begin [3] - 6:11, 20:13, 44:21
behalf [3] - 13:23, 38:17, 80:15
behind [2] - 9:5, 29:21
belabor [2] - 9:14, 13:25
belaboring [1] - 8:17
belief [1] - 30:23
believes [1] - 17:22
belt [1] - 60:25
benefit [5] - 14:4, 15:25, 19:24, 28:14, 82:12
best [2] - 11:10, 45:15
better [3] - 25:15, 28:25, 64:15
between [10] - 19:24, 30:4,

47:13, 60:7, 60:12, 64:1, 64:25, 65:1, 65:16, 74:23
beyond [3] - 23:9, 63:9, 63:13
big [1] - 16:18
biologist [4] - 24:21, 34:10, 34:11, 34:18
biologist's [1] - 60:25
biologists [1] - 71:8
biostatistical [1] - 49:25
bit [3] - 10:14, 34:1, 70:1
blast [1] - 51:4
board [1] - 25:16
body [2] - 48:20, 48:24
bolt [1] - 72:8
bottle [1] - 33:14
bottom [1] - 62:14
bought [2] - 17:15, 17:17
break [8] - 18:2, 18:3, 18:5, 54:7, 70:3, 70:5, 70:9, 79:21
brief [4] - 9:1, 20:2, 28:9, 28:18
briefing [1] - 26:5
briefly [4] - 11:6, 28:17, 57:1, 80:2
bring [7] - 10:20, 12:3, 34:1, 35:7, 35:15, 56:3, 69:14
bringing [1] - 33:16
broadcast [4] - 9:23, 20:25, 27:9, 27:25
broader [1] - 81:10
broken [1] - 54:5
brought [4] - 11:14, 11:15, 13:16, 19:13
bullets [1] - 57:7
Bureau [1] - 34:5
Burt [10] - 4:12, 33:2, 33:8, 33:17, 37:17, 39:24, 64:14, 65:22, 69:7, 76:2
BURT [25] - 32:1, 33:9, 33:18, 33:23, 35:24, 36:5, 37:18, 38:2, 39:25, 40:2, 63:25, 64:4, 64:19, 64:23, 65:23, 66:4, 66:6, 69:8, 69:14, 69:16, 69:25, 76:4, 79:5, 79:11, 79:15
butt [1] - 72:6
button [1] - 58:3
buttons [2] - 7:14, 57:24
buy [2] - 9:4, 16:1
buy-in [1] - 16:1
BY [9] - 33:23, 36:5, 40:2, 63:16, 64:23, 66:6, 69:16, 70:12, 76:4

C

CAITLIN [1] - 33:19
Caitlin [1] - 33:25

calculated [1] - 57:15
calculation [5] - 37:1, 37:13, 72:22, 73:8, 74:10
calculations [1] - 74:6
camera [21] - 5:4, 8:8, 11:16, 11:17, 14:12, 14:21, 14:23, 14:24, 15:6, 17:10, 17:13, 20:19, 20:21, 20:22, 21:12, 25:11, 26:3, 27:9, 37:25, 38:14, 81:19
cameras [8] - 14:8, 14:19, 15:25, 19:18, 22:4, 27:16, 27:20
cannot [12] - 30:13, 38:18, 42:12, 50:9, 50:21, 51:13, 52:9, 52:20, 53:8, 64:1, 69:3, 82:2
cap [9] - 49:15, 49:16, 49:21, 49:23, 49:24, 50:1, 50:2, 50:4, 73:17
capability [2] - 24:13, 24:15
capacity [1] - 81:14
capital [1] - 7:17
capture [7] - 5:1, 5:11, 14:25, 27:22, 27:25, 38:16, 82:4
captured [3] - 11:17, 37:25, 82:2
capturing [1] - 26:19
care [2] - 5:1, 26:23
cartridge [9] - 72:17, 72:18, 74:18, 74:21, 74:23, 74:24, 74:25
case [51] - 7:16, 7:17, 14:17, 14:22, 16:9, 17:3, 17:9, 19:17, 25:19, 29:24, 30:3, 30:7, 30:15, 30:19, 30:25, 31:1, 31:7, 42:7, 43:20, 43:21, 44:3, 44:6, 44:8, 44:9, 44:11, 44:21, 44:22, 47:6, 52:18, 54:10, 55:17, 55:19, 55:25, 59:10, 59:24, 61:16, 61:20, 63:1, 63:10, 63:18, 65:8, 65:11, 65:21, 71:4, 71:11, 71:16, 72:17, 74:18, 74:21, 74:23, 74:25
Case [1] - 4:4
cases [4] - 30:1, 30:6, 47:2, 68:12
caught [1] - 15:10
causing [1] - 25:12
caution [2] - 17:22, 68:14
caveats [1] - 49:8
cell [4] - 6:21, 6:23, 6:25, 7:1
certain [8] - 19:19, 23:7, 45:21, 54:9, 54:19, 55:11, 56:19, 71:8
certainly [4] - 11:11, 13:5, 18:22, 20:15

certainty^[5] - 43:3, 43:9, 43:10, 43:11, 43:15
Chad^[1] - 4:7
chain^[1] - 22:16
challenges^[4] - 15:18, 25:10, 25:12, 25:13
characterize^[1] - 40:9
chart^[5] - 61:3, 61:9, 61:10, 62:8, 65:14
chief^[2] - 34:6, 34:8
choose^[2] - 19:11, 30:4
chooses^[1] - 64:22
choosing^[1] - 80:6
chose^[2] - 49:18, 50:2
chosen^[3] - 49:24, 50:1, 50:4
Chris^[1] - 4:9
circumstances^[1] - 32:15
cited^[1] - 29:25
civil^[1] - 7:6
civility^[1] - 82:24
claim^[2] - 30:23, 31:4
clarification^[1] - 38:9
clarity^[1] - 5:8
clear^[2] - 9:10, 13:7
Clerk^[1] - 33:21
clerks^[1] - 11:10
close^[4] - 17:6, 28:22, 31:14, 33:16
closer^[1] - 34:2
clothing^[1] - 7:14
coalition^[6] - 15:24, 16:3, 17:1, 17:7, 17:8, 17:16
Coast^[1] - 32:6
colloquy^[1] - 8:7
combination^[1] - 68:13
coming^[1] - 42:11
commenced^[1] - 4:3
commenting^[1] - 47:19
comments^[3] - 7:10, 20:17, 21:18
communication^[1] - 4:24
company^[1] - 59:13
compare^[1] - 62:3
compared^[3] - 14:15, 56:13, 56:16
compares^[1] - 51:19
comparing^[3] - 62:14, 64:25, 66:16
comparison^[6] - 62:4, 62:8, 62:18, 65:1, 77:5, 77:6
comparisons^[1] - 64:2
competency^[2] - 71:10, 71:13
competing^[2] - 51:21
complete^[1] - 16:1
complexity^[1] - 77:6
compliance^[2] - 6:3, 27:11
comply^[5] - 8:8, 8:10, 8:20,

17:24, 23:11
complying^[1] - 6:7
component^[1] - 73:11
components^[1] - 37:3
computation^[2] - 78:12, 78:14
concern^[4] - 8:18, 16:24, 38:8, 39:12
concerned^[2] - 8:23, 9:10
concerning^[5] - 7:16, 10:5, 10:12, 22:6, 47:23
concerns^[1] - 39:23
concluded^[1] - 83:5
concludes^[2] - 21:13, 82:9
conclusion^[13] - 36:17, 36:19, 36:20, 36:25, 37:5, 37:10, 40:3, 40:24, 45:15, 73:6, 75:3, 75:14, 75:20
conclusions^[7] - 27:18, 40:13, 41:11, 64:6, 64:9, 72:20, 75:5
conduct^[1] - 7:7
confer^[2] - 10:11, 19:10
confidential^[1] - 4:24
conflicting^[2] - 30:15, 31:5
conform^[1] - 41:11
conformity^[1] - 42:23
congregated^[1] - 55:15
connected^[2] - 7:15, 78:20
connection^[4] - 42:6, 44:16, 47:13, 56:6
consequence^[1] - 19:2
consequences^[2] - 11:2, 19:19
consider^[1] - 39:20
consideration^[1] - 12:22
considered^[2] - 27:6, 81:4
consisted^[1] - 21:5
consistent^[7] - 7:5, 13:10, 13:24, 57:9, 67:18, 67:20, 76:18
constituted^[1] - 27:10
constitutional^[6] - 6:17, 18:10, 20:9, 27:2, 27:5
consume^[6] - 44:9, 44:19, 44:22, 44:23, 45:3, 46:14
consumed^[2] - 45:21, 46:1
contact^[2] - 55:3, 58:3
contacted^[1] - 32:8
contain^[1] - 21:5
contained^[2] - 16:8, 36:18
contaminated^[1] - 55:25
content^[2] - 23:6, 23:16
contents^[1] - 23:9
context^[4] - 11:12, 29:16, 31:20, 50:16
continue^[1] - 26:10
continued^[2] - 28:19, 82:16
continues^[1] - 30:1

continuing^[1] - 31:17
contradictory^[1] - 30:21
contribute^[1] - 55:10
contributed^[6] - 55:14, 58:7, 67:10, 74:3, 75:23, 77:12
contributing^[1] - 51:25
contributor^[17] - 37:3, 37:11, 37:15, 40:6, 47:6, 47:12, 47:19, 50:12, 53:5, 53:10, 57:10, 57:19, 75:18, 77:4, 77:5, 77:10, 77:11
contributors^[16] - 49:9, 49:10, 55:7, 66:10, 66:14, 66:20, 67:6, 67:12, 67:15, 67:19, 67:21, 68:24, 76:18, 77:14, 77:17, 77:24
control^[2] - 8:18, 16:3
convey^[4] - 47:9, 49:22, 52:9
Convey^[1] - 50:21
conveyed^[1] - 44:16
cooperation^[1] - 7:18
copies^[1] - 8:2
correct^[121] - 7:23, 13:3, 13:5, 19:1, 35:19, 35:20, 36:22, 36:23, 36:24, 37:6, 37:7, 37:15, 37:16, 39:4, 41:8, 41:9, 41:13, 42:16, 42:17, 42:22, 43:1, 43:2, 43:12, 43:13, 43:16, 43:17, 45:8, 45:13, 45:19, 46:9, 46:11, 46:16, 47:3, 47:4, 47:8, 47:20, 47:21, 48:15, 49:5, 49:6, 50:19, 51:7, 51:10, 52:16, 52:19, 52:21, 54:2, 54:3, 54:18, 55:16, 55:20, 56:8, 56:9, 56:12, 56:15, 56:18, 57:4, 57:11, 57:14, 57:24, 57:25, 58:11, 58:12, 58:25, 59:11, 59:12, 59:15, 59:24, 59:25, 60:16, 60:19, 61:6, 61:13, 61:21, 61:22, 61:24, 62:1, 62:12, 62:13, 62:16, 62:19, 62:21, 63:6, 65:5, 66:7, 66:8, 66:24, 67:4, 67:23, 68:1, 68:2, 68:7, 69:16, 69:17, 71:5, 71:6, 73:19, 73:23, 74:8, 74:22, 75:10, 75:13, 76:7, 76:8, 76:11, 76:14, 76:19, 76:24, 76:25, 77:3, 77:4, 77:15, 78:2, 78:3, 78:6, 78:13, 78:17, 78:21, 79:4, 80:8, 81:24
corrected^[1] - 9:2
correctly^[2] - 26:6, 69:19
correlated^[1] - 66:19
couched^[1] - 29:16
counsel^[18] - 4:6, 4:23, 6:14, 8:3, 8:25, 9:21,

10:11, 12:2, 20:5, 23:23, 27:6, 38:8, 63:24, 64:22, 68:22, 82:25
country^[1] - 71:5
county^[1] - 4:8
couple^[1] - 72:19
course^[5] - 16:2, 17:18, 23:22, 30:17, 31:18
COURT^[75] - 4:4, 4:10, 4:14, 4:16, 5:15, 5:19, 5:23, 6:2, 6:6, 6:10, 7:25, 8:5, 9:17, 10:4, 10:10, 10:22, 11:7, 12:20, 13:18, 13:21, 18:1, 18:4, 18:6, 19:9, 19:22, 20:4, 21:21, 21:25, 24:4, 24:6, 25:5, 26:14, 26:17, 28:16, 31:23, 33:2, 33:7, 33:13, 35:25, 36:2, 37:17, 37:19, 38:4, 38:6, 38:10, 38:21, 38:25, 39:3, 39:6, 39:11, 39:23, 63:14, 63:24, 64:3, 64:7, 64:21, 65:22, 66:1, 66:5, 69:7, 69:11, 70:1, 70:8, 76:2, 79:6, 79:9, 79:12, 79:17, 79:25, 80:8, 80:18, 80:23, 82:9, 82:15, 82:22
court^[14] - 4:4, 5:14, 6:15, 8:13, 14:18, 16:11, 18:25, 20:1, 20:4, 23:10, 27:11, 38:18, 39:10, 81:16
Court^[122] - 4:17, 5:4, 6:11, 6:15, 6:24, 7:3, 7:18, 8:2, 8:4, 8:7, 8:10, 8:12, 8:15, 8:17, 8:22, 9:22, 9:23, 9:25, 10:2, 10:20, 10:25, 11:4, 11:10, 11:20, 13:15, 14:4, 14:6, 14:11, 14:17, 15:10, 16:16, 16:18, 16:20, 16:25, 17:24, 17:25, 18:5, 18:20, 18:22, 18:23, 19:4, 19:10, 19:18, 19:19, 19:22, 20:6, 20:10, 20:23, 21:10, 21:14, 22:7, 22:12, 22:14, 22:16, 22:21, 22:25, 23:11, 23:13, 23:15, 23:17, 23:22, 23:24, 24:1, 25:8, 25:13, 25:14, 25:22, 26:6, 26:7, 26:13, 26:15, 27:1, 27:8, 27:10, 27:15, 27:18, 28:1, 28:3, 28:4, 28:6, 28:8, 28:9, 28:11, 28:17, 29:5, 29:9, 29:10, 29:15, 29:23, 30:6, 30:7, 30:8, 30:13, 30:14, 30:19, 31:1, 31:7, 31:8, 32:2, 32:4, 32:10, 32:23, 38:25, 39:16, 39:19, 42:1, 54:23, 69:3, 69:6, 80:2, 80:14, 81:1, 81:3, 81:6, 81:18, 82:17, 82:24, 83:2

Court's [35] - 5:7, 5:20, 7:5, 8:9, 8:20, 8:21, 9:8, 9:10, 10:18, 11:2, 14:6, 15:8, 16:24, 17:10, 17:20, 19:3, 19:8, 19:12, 20:1, 20:16, 21:24, 22:5, 25:14, 25:16, 25:18, 26:4, 27:11, 27:17, 28:3, 38:2, 38:24, 39:15, 39:18, 80:20 courtroom [25] - 4:13, 4:20, 4:22, 5:3, 6:20, 6:21, 6:23, 7:19, 8:20, 10:18, 14:7, 14:19, 19:18, 21:12, 25:12, 26:3, 27:23, 38:14, 39:2, 39:16, 79:23, 80:12, 81:10, 81:13, 81:17 Courts [1] - 71:5 courts [1] - 47:24 coverage [11] - 12:13, 22:2, 22:6, 22:13, 22:17, 22:20, 22:23, 23:3, 23:18, 24:2, 28:5 covered [1] - 37:21 creating [1] - 31:3 credibility [1] - 29:13 credible [1] - 31:5 crime [1] - 53:7 critical [1] - 15:23 cross [3] - 32:25, 70:2, 70:3 CROSS [1] - 70:11 CROSS-EXAMINATION [1] - 70:11 CROWLEY [6] - 5:11, 5:17, 5:21, 5:25, 6:4, 6:8 Crowley [1] - 5:17 cumulative [1] - 12:9 current [1] - 26:12 cut [1] - 30:3	17:19, 24:20, 27:2, 27:10, 27:15, 28:12, 29:1, 29:3, 29:8, 30:11, 30:12, 30:13, 31:9, 31:18, 31:25, 36:2, 45:2, 68:22, 79:14, 82:19 Defense [1] - 36:4 defense's [2] - 27:14, 27:19 defensible [1] - 51:8 degradation [4] - 54:11, 54:13, 76:15, 76:21 degraded [3] - 54:10, 65:8, 76:13 degree [2] - 43:9, 43:15 delay [3] - 11:3, 24:10, 24:11 delineate [1] - 52:17 deliver [2] - 25:24, 25:25 denied [5] - 9:25, 22:25, 23:3, 27:16, 27:23 denying [1] - 23:25 Department [4] - 41:12, 41:20, 42:2, 42:4 dependent [1] - 67:2 depicted [1] - 19:18 deposited [3] - 52:24, 54:1, 76:24 deposition [4] - 47:16, 50:13, 50:18, 53:1 describe [1] - 49:9 described [3] - 10:7, 50:14, 76:5 descriptors [2] - 50:9, 50:15 deserves [1] - 20:11 deserving [1] - 20:12 designed [3] - 9:12, 60:17, 60:20 desirable [1] - 22:11 desire [1] - 11:2 detail/smudging [4] - 72:7, 72:9, 72:12, 72:13 determination [2] - 30:5, 69:1 determine [2] - 52:4, 67:14 determined [1] - 56:14 determining [1] - 69:3 devastating [1] - 31:16 developed [4] - 53:4, 53:10, 59:1, 59:16 developers [1] - 59:21 developing [1] - 60:24 device [1] - 6:23 devices [2] - 5:1, 6:20 dialogue [2] - 5:7, 19:24 dictated [1] - 42:10 difference [2] - 65:16, 74:23 different [12] - 13:6, 15:7, 16:11, 19:1, 59:23, 60:9, 60:22, 62:24, 63:2, 63:3, 63:19, 64:12	difficult [3] - 31:9, 67:11, 69:1 difficulty [4] - 6:6, 67:25, 68:23, 69:3 dignity [3] - 6:12, 7:4, 7:20 diligence [1] - 11:18 direct [2] - 32:25, 59:8 DIRECT [1] - 33:22 directed [1] - 38:15 direction [1] - 17:21 directive [1] - 42:2 directly [1] - 66:19 disagree [3] - 10:16, 50:3, 50:7 disassembly [2] - 72:16, 74:17 disclosed [1] - 23:16 discredit [1] - 31:2 discretion [2] - 30:4, 39:15 discussed [1] - 79:22 discussing [1] - 37:24 discussion [2] - 32:3, 69:9 discussions [1] - 5:2 display [5] - 7:13, 20:22, 21:11, 34:23, 37:22 displayed [10] - 20:18, 20:19, 21:4, 27:25, 37:25, 38:1, 39:1, 39:14, 39:16, 81:8 displaying [1] - 80:20 disregard [2] - 30:20, 31:1 disrespectful [1] - 7:8 disruptive [1] - 7:8 distinction [1] - 60:12 distinguish [1] - 64:1 distracting [1] - 7:8 distraction [1] - 7:2 District [1] - 16:10 DNA [77] - 24:21, 32:18, 34:6, 34:14, 34:15, 34:20, 35:3, 36:9, 37:3, 41:22, 45:6, 45:21, 46:6, 47:11, 47:16, 48:13, 48:20, 48:21, 49:10, 50:13, 50:14, 50:18, 50:21, 50:23, 51:5, 51:20, 52:2, 52:3, 52:9, 52:14, 52:23, 52:25, 53:1, 53:3, 53:4, 53:5, 53:6, 53:9, 53:10, 53:18, 53:20, 54:1, 54:4, 54:5, 54:7, 55:4, 55:5, 55:11, 56:14, 56:20, 57:4, 58:4, 58:7, 58:18, 58:19, 60:3, 60:6, 60:7, 60:15, 60:21, 61:18, 62:7, 65:7, 65:8, 70:21, 70:25, 73:9, 74:3, 75:16, 75:23, 76:12, 76:23, 77:3, 77:8, 77:12, 78:1 DNA-specific [1] - 70:25 docketed [1] - 22:3 document [8] - 41:20,	41:25, 42:8, 42:11, 43:7, 48:16, 48:20, 69:16 documents [1] - 23:7 DOJ [2] - 41:17, 42:12 done [8] - 9:3, 9:9, 26:21, 32:24, 65:21, 65:24, 68:13, 69:10 doubt [4] - 8:25, 22:21, 23:15, 29:2 down [11] - 11:20, 11:22, 13:1, 21:1, 37:11, 43:18, 49:3, 54:5, 54:7, 56:25, 79:13 draw [4] - 31:13, 36:14, 64:5, 64:9 drawn [3] - 29:18, 30:10, 31:18 Dremel [4] - 54:17, 57:24, 58:4, 58:10 drew [1] - 36:20 Droesbeke [1] - 30:25 dropped [1] - 65:10 due [4] - 26:25, 40:25, 54:6, 77:6 duly [1] - 33:20 during [7] - 4:22, 6:14, 7:12, 21:8, 28:1, 32:2, 82:4 duties [1] - 34:16
D			
D3 [2] - 61:17, 61:19 D317 [1] - 62:23 date [2] - 32:4, 43:22 dated [1] - 35:18 David [1] - 4:8 days [2] - 13:3, 31:15 deadlines [1] - 28:7 deal [1] - 16:18 dealing [1] - 12:12 December [1] - 35:18 decide [1] - 70:2 decided [1] - 23:17 decision [1] - 50:16 decisions [1] - 26:24 declared [1] - 65:2 decorum [5] - 4:21, 5:14, 5:20, 7:5, 17:10 dedicating [1] - 26:8 defense [26] - 11:11, 11:23, 12:2, 12:21, 13:24, 14:11,			
E			
e-mail [3] - 44:13, 44:15, 44:23 East [1] - 32:6 educate [1] - 32:23 education [1] - 67:14 effect [1] - 18:8 effective [1] - 27:24 effort [2] - 8:21, 42:11 efforts [2] - 11:24, 25:17 either [6] - 20:15, 31:24, 39:12, 40:14, 41:4, 82:12 elaborating [1] - 52:1 electronic [19] - 5:1, 6:20, 6:23, 8:15, 8:16, 9:8, 9:23, 22:2, 22:6, 22:12, 22:17, 22:20, 22:23, 23:3, 23:17, 24:2, 27:20, 27:21, 28:5 element [1] - 30:23 eliminate [3] - 30:10, 55:5, 55:25 elimination [9] - 54:20, 54:23, 55:1, 55:4, 55:18, 55:23, 56:5, 56:20, 57:3 EMC [2] - 10:1, 28:8 employ [1] - 40:12 empty [1] - 10:18 encompassing [1] - 82:18 encourage [1] - 19:11 end [4] - 15:12, 32:25, 45:11, 72:9			

endeavor [1] - 26:10
engage [1] - 7:7
engaged [2] - 47:12, 77:9
engages [1] - 29:15
ensure [6] - 5:7, 6:3, 7:1, 15:22, 26:11, 38:13
enter [2] - 4:6, 4:22
entertain [1] - 28:9
entirely [1] - 46:1
entirety [2] - 39:2, 61:11
entitled [3] - 7:5, 29:3, 38:13
environment [1] - 7:19
environmental [2] - 54:6, 54:14
equipment [3] - 5:2, 6:3, 27:20
Erika [1] - 4:18
error [3] - 9:2, 42:16, 78:19
especially [1] - 10:14
essential [1] - 27:11
essentially [2] - 37:10, 48:17
estimate [1] - 66:10
estopped [1] - 32:14
evaluate [1] - 18:11
events [3] - 22:16, 27:7, 39:17
everywhere [1] - 45:6
evidence [48] - 12:10, 14:7, 14:18, 16:5, 21:11, 25:3, 28:15, 28:19, 29:9, 29:14, 29:24, 30:2, 30:11, 30:15, 30:16, 30:20, 30:24, 31:2, 31:5, 31:12, 31:16, 32:21, 34:24, 35:7, 35:22, 35:24, 36:3, 36:23, 37:24, 39:8, 42:13, 43:1, 43:2, 47:1, 51:20, 56:1, 56:17, 61:23, 62:17, 65:7, 65:8, 65:14, 66:15, 69:2, 69:4, 78:24, 79:20, 79:21
evidentiary [7] - 37:1, 37:14, 40:5, 40:7, 42:21, 71:20, 72:3
exact [2] - 43:22, 54:8
exactly [4] - 13:12, 14:10, 18:11, 18:14
EXAMINATION [3] - 33:22, 70:11, 76:3
Examination [1] - 41:22
examination [7] - 10:13, 11:12, 15:1, 15:2, 36:21, 44:17, 45:12
examine [1] - 43:1
examined [1] - 33:21
examining [1] - 13:13
example [2] - 68:12, 68:14
exceeding [1] - 31:21
exceeds [1] - 29:18
exception [1] - 46:24

exclude [3] - 22:2, 27:16, 65:17
excluded [1] - 51:24
exclusion [6] - 40:14, 41:5, 65:5, 65:12, 65:24
exclusionary [1] - 51:23
excuse [1] - 70:6
excused [1] - 79:9
exhaustive [1] - 26:5
exhibit [28] - 8:15, 8:19, 9:15, 11:13, 11:15, 11:20, 11:21, 12:5, 12:8, 14:15, 15:1, 15:3, 15:8, 16:6, 16:8, 16:14, 17:3, 17:13, 23:6, 23:10, 23:16, 23:18, 36:2, 53:19, 73:9, 81:9
Exhibit [30] - 12:9, 20:18, 20:19, 20:23, 21:2, 21:10, 27:9, 34:23, 35:7, 36:4, 36:5, 37:2, 39:25, 41:18, 45:20, 46:18, 48:8, 69:14, 71:24, 72:22, 77:20, 77:21, 79:23, 80:12, 81:2, 81:8, 81:12, 82:10
exhibits [15] - 8:14, 14:1, 14:2, 14:3, 14:5, 24:22, 27:25, 29:11, 37:22, 38:1, 39:1, 39:9, 39:13, 39:22, 80:21
Exhibits [4] - 24:25, 37:4, 46:3, 75:4
exits [1] - 4:21
expect [3] - 55:9, 58:4, 65:11
expectations [1] - 5:8
expected [1] - 4:23
expects [1] - 7:3
experience [1] - 67:14
expert [4] - 36:9, 64:14, 64:16, 67:1
experts [1] - 32:9
explain [3] - 51:17, 52:13, 53:9
explained [2] - 11:14, 12:1
Explosives [1] - 34:6
exposure [1] - 18:8
expressing [2] - 7:15, 7:16
expressions [1] - 43:9
expressly [1] - 6:22
extended [1] - 69:8
extent [1] - 52:2
external [1] - 70:19
extra [1] - 18:17
extract [1] - 46:14
extracts [1] - 46:6
extremely [1] - 32:20

F

facie [1] - 31:9
fact [11] - 23:6, 23:9, 23:18,

23:19, 24:23, 30:5, 30:17, 31:5, 41:1, 41:10, 69:4
Factors [1] - 48:14
factors [2] - 48:22, 67:10
factual [1] - 21:24
failed [1] - 8:20
fails [1] - 64:24
fair [5] - 9:13, 23:14, 50:8, 69:4, 81:5
fairly [1] - 62:12
faithful [1] - 7:20
falsely [1] - 45:16
familiar [8] - 40:10, 41:20, 48:10, 50:5, 58:14, 61:3, 61:9, 68:5
familiarize [1] - 50:6
family [3] - 39:8, 39:9, 79:24
fan [1] - 22:7
far [3] - 16:5, 48:23, 74:6
fashioned [1] - 12:15
father [1] - 57:3
favor [4] - 30:11, 30:13, 31:13, 69:2
favorable [2] - 29:25, 31:12
FBI [2] - 40:8, 70:25
feasible [1] - 45:18
feed [1] - 21:19
few [3] - 10:20, 30:6, 42:8
field [1] - 58:20
figure [1] - 67:11
file [1] - 55:17
filed [5] - 16:9, 21:7, 22:14, 28:7, 28:9
filing [1] - 28:8
filming [1] - 17:14
final [2] - 24:20, 67:5
finally [2] - 12:12, 31:6
finder [2] - 30:5, 30:17
findings [2] - 21:13, 73:25
fine [2] - 48:25, 64:15
firearm [2] - 71:19, 72:2
Firearms [1] - 34:5
fired [1] - 75:1
first [15] - 4:20, 14:5, 19:16, 33:20, 35:4, 36:7, 41:7, 42:9, 43:19, 44:5, 51:22, 56:13, 61:10, 61:12, 75:3
five [11] - 14:14, 19:12, 19:23, 29:1, 40:13, 47:3, 63:17, 66:12, 67:18, 77:2
five-minute [1] - 19:23
flashed [1] - 17:13
floor [1] - 6:21
fly [1] - 32:6
focus [3] - 36:6, 38:15, 40:6
focused [1] - 32:16
folks [2] - 55:14, 80:22
follow [1] - 39:8
follows [1] - 33:21

forbidden [1] - 17:11
fore [1] - 72:9
fore-end [1] - 72:9
forefront [1] - 58:21
forensic [9] - 24:21, 34:10, 34:11, 34:18, 43:2, 45:6, 48:21, 60:25, 71:7
Forensic [2] - 41:22, 48:13
forever [1] - 19:3
formulate [1] - 67:2
forth [2] - 5:24, 70:25
forthcoming [1] - 29:17
forward [5] - 12:16, 18:11, 26:12, 33:10, 44:24
foundation [1] - 64:20
four [14] - 13:3, 31:15, 47:3, 66:18, 67:20, 68:8, 68:14, 69:22, 73:12, 76:18, 77:2, 77:17, 77:23, 82:17
four-person [4] - 66:18, 68:8, 68:14, 69:22
fourth [1] - 6:21
Fourth [1] - 16:10
framed [2] - 9:5, 37:5
frankly [1] - 29:9
free [1] - 13:5
freshly [1] - 19:14
front [3] - 41:1, 43:23, 45:11
full [13] - 15:24, 16:7, 16:8, 16:13, 16:14, 17:3, 17:4, 18:8, 19:14, 21:2, 21:5, 21:8, 26:24
fully [3] - 17:15, 17:17, 18:15
fundamental [1] - 27:4
furtherance [1] - 6:18
future [5] - 12:16, 22:3, 24:14, 24:16, 24:18

G

gatekeeper [1] - 29:10
generation [1] - 58:17
genotypes [1] - 64:25
Genotyping [1] - 41:23
gestures [1] - 7:11
given [13] - 9:18, 15:24, 18:9, 20:11, 27:12, 28:17, 31:11, 32:15, 38:16, 39:17, 51:14, 51:20, 80:19
glad [1] - 57:8
glass [1] - 9:5
goal [1] - 17:17
governing [1] - 5:8
grade [1] - 51:18
grant [2] - 23:25, 80:17
granted [3] - 22:15, 22:25, 27:23
Gray [1] - 4:9
great [1] - 26:23

grips ^[1] - 72:5 group ^[1] - 75:4 grouped ^[1] - 75:8 GRUNANDER ^[6] - 4:7, 28:14, 28:18, 79:19, 80:19, 82:13 Grunander ^[4] - 4:7, 28:16, 31:23, 32:2 Grunander's ^[3] - 31:25, 33:5, 63:9 guard ^[6] - 72:7, 73:2, 76:6, 76:10, 76:24, 77:3 guess ^[3] - 23:2, 67:13, 78:5 guidance ^[3] - 48:16, 48:19, 68:4 guidelines ^[1] - 48:24 gun ^[2] - 53:20, 53:23	68:21, 79:16, 80:4, 80:15, 82:14, 82:21 hope ^[1] - 32:24 hopefully ^[1] - 32:23 hours ^[5] - 8:13, 14:9, 14:14, 29:1, 82:17 house ^[4] - 55:9, 55:10, 56:11 household ^[2] - 58:7, 58:8 Human ^[1] - 48:14 human ^[1] - 48:22 humidity ^[2] - 54:6, 54:15 HUNT ^[2] - 63:12, 63:16 Hunt ^[1] - 4:8 hypotheses ^[1] - 51:21 hypothesis ^[1] - 51:23	inconsistent ^[1] - 30:22 increased ^[2] - 53:3, 67:25 increases ^[3] - 67:24, 68:24 incriminated ^[1] - 45:16 independence ^[1] - 49:25 independent ^[2] - 45:1, 45:11 indicated ^[4] - 32:2, 32:10, 57:18 indicates ^[2] - 30:20, 52:2 individual ^[13] - 4:21, 42:20, 46:25, 51:24, 55:2, 58:19, 60:2, 60:3, 60:9, 67:3, 74:2, 75:18, 75:22 individuals ^[9] - 6:25, 56:24, 60:7, 66:16, 73:11, 73:12, 75:6, 75:19, 77:23 indulgence ^[1] - 10:18 inevitable ^[1] - 38:15 infallible ^[3] - 42:13, 42:15, 78:19 inference ^[1] - 31:3 inferences ^[4] - 30:2, 30:10, 31:13, 69:2 information ^[4] - 36:18, 44:16, 56:10, 65:12 Information ^[4] - 12:7, 12:9, 16:7, 21:7 informed ^[1] - 9:3 input ^[1] - 80:13 inside ^[2] - 19:18, 27:22 insightful ^[1] - 28:21 instance ^[5] - 37:11, 55:8, 57:2, 58:22, 67:17 instances ^[2] - 24:9, 24:11 instead ^[2] - 40:22, 40:23 Institute ^[1] - 48:12 instructed ^[1] - 11:22 instruction ^[1] - 38:16 insufficient ^[1] - 31:11 insults ^[2] - 54:6, 54:14 insurance ^[1] - 45:16 intend ^[2] - 32:16, 82:3 intended ^[2] - 14:10, 15:4 intending ^[2] - 25:24, 26:18 interest ^[7] - 27:4, 51:22, 51:23, 54:25, 61:16, 61:17, 63:17 interests ^[4] - 6:18, 25:17, 26:6, 81:6 international ^[1] - 70:23 internet ^[1] - 15:21 Interpretation ^[1] - 48:13 interpreted ^[2] - 50:16, 50:21 interpreting ^[1] - 68:4 interrupt ^[1] - 37:17 interviews ^[1] - 32:9 introduced ^[1] - 14:16 investigators ^[1] - 55:24	invitation ^[1] - 11:1 invite ^[1] - 6:25 invoke ^[1] - 63:10 invoked ^[1] - 29:8 involved ^[6] - 7:21, 11:23, 15:3, 53:7, 55:19, 55:24 irrelevant ^[2] - 64:13, 64:18 ISO ^[1] - 70:23 isoalleles ^[3] - 62:25, 63:19, 64:1 issue ^[22] - 7:23, 11:4, 11:11, 11:13, 11:25, 13:12, 14:1, 19:1, 20:15, 21:14, 21:24, 23:10, 23:11, 26:18, 26:22, 27:1, 28:6, 32:17, 52:14, 53:2, 80:2, 80:11 issued ^[2] - 35:5, 39:17 issues ^[5] - 23:11, 26:15, 50:10, 69:5, 80:14 issuing ^[1] - 48:24 Item ^[1] - 57:2 item ^[8] - 49:10, 51:5, 53:5, 53:11, 53:17, 54:4, 54:17, 55:14 items ^[3] - 7:14, 54:20, 56:6 itself ^[3] - 17:4, 60:8, 78:9
H	I		J
half ^[1] - 20:21 hand ^[2] - 53:13, 53:19 handle ^[1] - 53:17 handled ^[1] - 53:15 hands ^[1] - 53:19 hard ^[1] - 39:7 headline ^[1] - 51:4 heads ^[1] - 7:11 hear ^[3] - 23:23, 25:9, 32:15 heard ^[9] - 20:16, 21:15, 24:9, 24:11, 31:15, 31:24, 33:5, 42:1, 80:1 hearing ^[34] - 5:10, 7:12, 10:3, 10:15, 12:17, 14:9, 21:9, 22:13, 22:18, 22:23, 24:3, 25:24, 28:10, 29:1, 29:2, 29:3, 29:5, 29:6, 29:19, 30:21, 31:8, 31:20, 31:22, 32:5, 32:8, 39:21, 63:8, 79:20, 79:21, 80:6, 82:15, 82:17, 82:20 heat ^[2] - 54:6, 54:14 held ^[2] - 16:11, 34:7 help ^[1] - 44:2 helpful ^[1] - 19:10 herein ^[1] - 33:20 Hester ^[1] - 30:14 high ^[3] - 15:15, 49:21, 66:18 higher ^[3] - 49:18, 73:14, 73:19 highlight ^[2] - 36:7, 41:7 highly ^[1] - 60:6 hold ^[1] - 19:8 home ^[2] - 54:17, 54:21 Honor ^[25] - 4:11, 8:1, 8:6, 11:8, 12:19, 13:20, 21:17, 21:23, 22:1, 24:8, 29:6, 31:15, 33:6, 38:7, 38:17, 39:7, 39:19, 65:19, 65:23,	idea ^[1] - 49:23 identification ^[2] - 42:20, 42:25 image ^[4] - 9:4, 17:3, 19:3, 20:24 images ^[1] - 19:18 imagine ^[1] - 8:18 immediately ^[7] - 10:6, 10:13, 11:3, 11:19, 11:21, 13:16, 27:24 implemented ^[1] - 59:6 imply ^[1] - 52:9 implying ^[2] - 42:24, 69:8 importance ^[3] - 6:12, 26:9, 27:12 important ^[6] - 6:18, 11:9, 16:4, 29:4, 48:3, 61:20 imposed ^[3] - 19:19, 28:8, 81:3 imposes ^[1] - 17:21 impossible ^[1] - 43:2 impression ^[1] - 32:20 improved ^[1] - 25:15 in-court ^[1] - 81:16 in-person ^[1] - 82:16 inaccurate ^[1] - 64:8 inadvertent ^[2] - 5:1, 81:9 incapable ^[1] - 31:2 incident ^[1] - 81:3 include ^[5] - 4:25, 30:1, 40:3, 40:18, 41:14 included ^[5] - 21:6, 22:4, 41:8, 41:10, 51:22 includes ^[1] - 24:3 including ^[4] - 6:14, 8:23, 25:18, 81:13 inclusion ^[16] - 37:2, 37:14, 40:15, 40:16, 40:23, 41:4, 51:1, 56:23, 57:5, 57:10, 57:20, 57:23, 58:10, 65:11, 71:20, 72:3 inconclusive ^[1] - 42:14		James ^[1] - 4:5 January ^[1] - 34:8 Jeff ^[3] - 4:9, 38:17, 80:15 Jefferson ^[1] - 34:13 join ^[1] - 7:1 JUDD ^[3] - 13:20, 13:22, 25:7 judge ^[9] - 28:14, 28:18, 28:20, 31:15, 53:13, 53:14, 79:19, 80:19, 82:13 Judge ^[1] - 29:21 judicial ^[1] - 27:3 July ^[1] - 4:1 jump ^[2] - 74:13, 75:2 jury ^[2] - 69:4, 69:6 Justice ^[4] - 41:12, 41:21, 42:2, 42:5 juxtaposed ^[1] - 15:4 juxtaposition ^[2] - 14:3, 15:2
			K
			Kathy ^[1] - 4:11 keep ^[5] - 19:21, 26:2, 32:16, 49:2, 70:8 Kimberlie ^[2] - 72:25, 74:13 kind ^[3] - 7:10, 12:16, 17:17 Kirk ^[5] - 4:18, 6:17, 27:3, 81:14 knowing ^[2] - 76:9, 78:1 knowledge ^[3] - 18:13,

59:9, 66:2 known ^[11] - 23:18, 46:24, 46:25, 49:11, 54:7, 55:2, 60:6, 61:14, 62:25, 65:16, 66:16 knowns ^[1] - 62:8 knows ^[1] - 9:22 KSL ^[1] - 5:18	49:16, 51:3, 51:12, 51:13, 51:19, 52:2, 57:14, 66:9, 66:15, 66:22, 67:1, 67:5, 67:10, 73:6, 73:7, 73:23, 75:7, 75:15, 75:25, 78:10, 78:12, 78:13, 78:23 likely ^[4] - 29:16, 73:10, 73:13, 75:17 limitation ^[5] - 49:24, 50:20, 51:11, 52:8, 52:11 limitations ^[7] - 32:23, 42:3, 47:23, 48:2, 49:8, 78:15, 79:3 limited ^[3] - 40:14, 40:15, 70:4 limiting ^[1] - 81:7 line ^[2] - 62:14, 64:17 lines ^[2] - 16:6, 40:9 liquid ^[1] - 46:14 list ^[2] - 46:7, 72:2 listed ^[2] - 45:23, 46:5 lists ^[2] - 61:5, 61:12 live ^[12] - 9:8, 13:1, 13:11, 15:17, 15:19, 16:2, 19:6, 20:20, 21:13, 80:21, 81:7, 82:11 live-streaming ^[1] - 80:21 lived ^[1] - 58:2 living ^[2] - 34:4, 58:6 location ^[7] - 25:12, 55:8, 60:10, 61:17, 61:19, 61:25, 65:12 locations ^[3] - 61:18, 63:17, 71:21 loci ^[3] - 50:1, 65:3, 65:17 locus ^[1] - 64:24 lodge ^[2] - 29:17, 29:20 lodging ^[2] - 31:21, 32:13 long-standing ^[1] - 45:5 look ^[15] - 18:7, 18:11, 18:14, 24:15, 47:5, 55:5, 58:22, 60:18, 60:20, 61:18, 62:2, 68:19, 69:9, 71:23, 72:21 looked ^[3] - 46:19, 48:21, 66:7 looking ^[7] - 60:2, 60:4, 60:11, 60:14, 62:11, 62:18, 63:19 looks ^[6] - 58:18, 60:6, 61:7, 62:7, 71:24, 73:21 Lopez ^[1] - 31:6 Louisiana ^[1] - 34:14 low ^[2] - 31:8, 66:17 LR ^[1] - 49:23	31:12 magistrates ^[1] - 31:1 magnitude ^[3] - 42:19, 75:7, 75:12 mail ^[3] - 44:13, 44:15, 44:23 maintain ^[1] - 4:21 maintaining ^[1] - 7:19 major ^[15] - 37:3, 47:6, 47:12, 47:18, 50:12, 50:14, 73:11, 75:17, 76:20, 77:4, 77:9, 77:11, 77:13, 77:16, 77:24 major/minor ^[1] - 77:7 majority ^[1] - 77:11 male ^[1] - 67:19 manager ^[1] - 34:15 manner ^[1] - 7:9 manual ^[1] - 69:10 March ^[2] - 16:12 marked ^[3] - 35:6, 35:14 match ^[6] - 64:25, 65:2, 65:3, 78:7, 78:9, 78:11 matching ^[2] - 62:5, 62:9 material ^[1] - 69:12 matter ^[4] - 9:7, 19:4, 24:1, 79:22 matters ^[3] - 20:9, 83:2 Matthew ^[4] - 56:7, 57:6, 57:18, 57:20 Mcbride ^[7] - 4:7, 13:18, 20:24, 21:1, 64:7, 70:3, 70:10 MCBRIDE ^[17] - 11:8, 13:10, 21:17, 24:8, 36:1, 38:5, 38:22, 63:7, 63:21, 64:8, 65:19, 68:21, 70:6, 70:12, 76:1, 79:8, 79:10 mean ^[6] - 9:21, 18:16, 46:10, 46:13, 70:17 meaning ^[3] - 49:19, 52:17, 75:24 meaningful ^[1] - 39:22 means ^[3] - 30:2, 52:13, 81:11 meant ^[1] - 47:9 measured ^[1] - 10:19 measurement ^[1] - 66:23 measures ^[2] - 4:24, 4:25 measuring ^[2] - 62:11, 62:20 mechanisms ^[1] - 50:17 media ^[47] - 8:3, 8:15, 8:16, 8:18, 8:25, 10:23, 11:11, 12:11, 12:13, 13:15, 13:19, 13:23, 14:12, 15:23, 15:24, 17:7, 17:16, 19:5, 19:20, 20:19, 22:2, 22:6, 22:13, 22:17, 22:20, 22:23, 23:3, 23:17, 23:23, 24:2, 24:7, 24:9, 24:12, 24:15, 25:6,	25:8, 25:16, 25:19, 26:9, 27:9, 27:24, 28:5, 33:4, 37:20, 38:6, 51:5 media's ^[1] - 17:15 Meghan ^[1] - 5:18 members ^[3] - 6:15, 16:25, 27:24 memory ^[3] - 13:11, 21:18, 44:2 mentioned ^[3] - 28:21, 35:13, 52:20 methodologies ^[2] - 71:1, 71:4 mic ^[1] - 34:1 Michael ^[1] - 4:12 microphone ^[1] - 33:15 might ^[4] - 14:3, 38:7, 47:10, 80:19 mind ^[5] - 5:15, 10:8, 19:14, 19:21, 33:15 mindful ^[1] - 6:16 minimize ^[1] - 15:13 minor ^[4] - 47:6, 50:15, 77:5, 77:9 minute ^[2] - 19:23, 71:25 minutes ^[4] - 10:21, 18:17, 19:13, 70:7 mischaracterize ^[1] - 52:21 misleading ^[1] - 32:20 mistake ^[2] - 9:1, 11:24 mistakes ^[3] - 14:22, 15:23, 17:8 mitigate ^[1] - 11:25 mixed ^[1] - 46:19 mixture ^[8] - 66:12, 66:18, 66:22, 67:24, 67:25, 68:12, 77:23 mixtures ^[13] - 47:1, 47:2, 47:5, 66:7, 68:4, 68:8, 68:9, 68:15, 68:24, 69:22, 69:23, 75:6 modeling ^[1] - 49:25 moment ^[2] - 20:12, 25:23 monitor ^[5] - 20:18, 38:12, 38:20, 38:23, 39:12 monitors ^[7] - 20:20, 21:4, 38:8, 38:12, 38:14, 38:15, 82:4 month ^[1] - 23:9 months ^[1] - 16:11 moreover ^[1] - 12:5 morning ^[18] - 4:10, 4:11, 4:14, 4:15, 4:16, 4:19, 6:11, 8:1, 8:7, 9:19, 13:20, 13:21, 26:8, 28:24, 38:11, 70:13, 70:14, 80:20 morning's ^[1] - 81:2 most ^[3] - 29:24, 31:12, 52:5 motion ^[4] - 22:3, 23:25, 27:15
L			
lab ^[4] - 44:25, 45:6, 64:10, 70:15 label ^[1] - 47:11 laboratories ^[3] - 42:12, 59:7, 70:24 laboratory ^[8] - 40:20, 40:25, 44:18, 70:18, 70:20, 70:21, 70:22, 73:17 labs ^[1] - 59:6 lacking ^[1] - 31:2 lacks ^[1] - 30:3 Lance ^[3] - 56:7, 57:23, 58:2 Language ^[1] - 41:21 language ^[11] - 40:3, 41:8, 41:10, 41:12, 41:14, 41:16, 42:11, 47:9, 47:13, 47:23, 48:4 largely ^[1] - 12:9 largest ^[1] - 76:21 last ^[9] - 10:8, 11:16, 21:19, 22:17, 32:3, 53:15, 53:17, 58:13, 68:23 Lauren ^[1] - 4:7 law ^[1] - 63:10 lay ^[1] - 64:19 learn ^[1] - 25:8 least ^[13] - 63:16, 67:18, 67:19, 67:20, 67:21, 73:9, 73:13, 75:16, 76:18, 77:2, 77:17, 81:11 leave ^[3] - 30:4, 30:16, 31:4 lectern ^[2] - 5:6, 39:6 led ^[4] - 47:16, 50:13, 50:17, 53:1 left ^[4] - 10:14, 20:6, 32:19, 33:14 legitimate ^[1] - 52:11 length ^[6] - 60:5, 60:11, 60:22, 62:20, 63:20, 64:23 lengths ^[1] - 60:14 less ^[7] - 22:11, 26:1, 74:4, 74:6, 75:25 level ^[5] - 18:12, 26:22, 50:10, 74:4, 75:24 levels ^[1] - 77:7 light ^[6] - 25:18, 26:4, 28:2, 29:24, 31:12, 81:2 likelihood ^[29] - 36:12, 41:2, 41:4, 42:19, 43:4,			
M			
ma'am ^[1] - 33:13 magistrate ^[6] - 29:23, 30:3, 30:9, 30:16, 30:20,			

motions [4] - 9:25, 28:9, 39:14 move [6] - 18:11, 35:24, 44:24, 63:13, 66:4, 74:9 moved [3] - 9:23, 25:13, 25:21 moving [1] - 71:19 MR [73] - 4:7, 7:24, 8:1, 8:6, 9:20, 10:9, 10:17, 11:1, 11:8, 13:10, 13:20, 13:22, 18:3, 18:5, 18:19, 19:15, 21:17, 21:23, 22:1, 24:5, 24:8, 25:7, 26:16, 28:14, 28:18, 32:1, 33:9, 33:18, 33:23, 35:24, 36:1, 36:5, 37:18, 38:2, 38:5, 38:17, 38:22, 38:23, 39:2, 39:5, 39:7, 39:19, 39:25, 40:2, 63:7, 63:21, 63:25, 64:4, 64:8, 64:19, 64:23, 65:19, 65:23, 66:4, 66:6, 68:21, 69:8, 69:14, 69:16, 69:25, 70:6, 70:12, 76:1, 76:4, 79:5, 79:8, 79:10, 79:11, 79:15, 79:19, 80:15, 80:19, 82:13 MS [21] - 4:11, 4:15, 5:11, 5:13, 5:17, 5:18, 5:21, 5:22, 5:25, 6:1, 6:4, 6:5, 6:8, 6:9, 33:6, 38:7, 63:12, 63:16, 80:4, 82:14, 82:21 multiple [2] - 55:9, 67:10 museum [1] - 9:5 must [8] - 23:11, 27:4, 29:24, 30:4, 30:16, 31:4, 31:12, 68:13	Neiman [2] - 38:17, 80:15 NESTER [4] - 4:11, 4:15, 82:14, 82:21 Nester [1] - 4:11 nets [1] - 15:16 never [4] - 49:10, 53:5, 53:11, 53:23 new [2] - 11:19, 60:17 New [2] - 34:14, 59:13 newer [1] - 58:25 next [13] - 10:3, 13:8, 28:13, 32:16, 33:8, 37:11, 43:6, 49:3, 51:12, 52:8, 57:16, 57:21, 58:17 NGS [10] - 58:14, 58:16, 58:17, 58:21, 58:24, 59:17, 59:18, 59:21, 60:24, 64:9 night [3] - 10:8, 11:16, 21:19 nights [1] - 16:25 nine [1] - 34:9 NIST [2] - 48:20, 66:22 non [2] - 36:9, 65:2 non-DNA [1] - 36:9 non-match [1] - 65:2 none [2] - 47:15, 52:22 nonexpert [1] - 32:18 noon [1] - 32:25 notation [1] - 38:11 note [5] - 13:2, 16:6, 21:5, 21:8, 80:8 noted [2] - 20:14, 82:3 notes [3] - 26:17, 44:11, 80:25 nothing [5] - 47:17, 68:25, 76:1, 77:8, 80:23 noticed [5] - 12:25, 18:16, 55:17, 67:16, 68:3 noting [1] - 20:4 Novak [14] - 4:12, 7:25, 8:5, 10:4, 13:5, 15:14, 15:20, 17:18, 18:2, 19:25, 20:13, 21:22, 21:25, 24:4 NOVAK [15] - 7:24, 8:1, 8:6, 9:20, 10:9, 10:17, 11:1, 18:3, 18:5, 18:19, 19:15, 21:23, 22:1, 24:5, 26:16 Novak's [1] - 25:9 NRC [1] - 45:9 number [35] - 22:3, 29:25, 41:3, 46:5, 49:9, 49:10, 49:17, 51:4, 54:8, 56:19, 60:9, 62:3, 62:5, 62:9, 66:9, 66:11, 66:14, 66:17, 66:18, 66:19, 67:6, 67:14, 67:24, 68:9, 68:16, 68:24, 71:24, 72:1, 72:22, 73:8, 73:14, 73:18, 73:19, 74:5, 74:10 numeric [1] - 66:22	O O-L-I-V-E-R [1] - 33:25 object [4] - 12:2, 58:7, 63:11, 68:21 objection [17] - 17:19, 22:14, 29:17, 29:20, 29:22, 31:21, 32:7, 32:11, 32:13, 36:1, 63:7, 63:15, 63:21, 64:22, 65:19, 66:5, 69:12 objections [4] - 10:1, 12:4, 32:5, 39:14 obligation [3] - 6:16, 17:8, 25:17 observe [1] - 79:24 observed [2] - 20:23, 22:22 observer's [1] - 15:5 obtained [2] - 37:4, 57:6 obviously [4] - 9:6, 10:24, 12:21, 39:20 occur [1] - 38:16 occurred [4] - 12:24, 13:9, 21:16, 27:7 octillion [2] - 49:18, 49:20 offense [1] - 7:17 Office [1] - 34:14 office [1] - 9:6 often [1] - 16:12 Oliver [16] - 32:9, 33:9, 33:10, 33:25, 34:1, 34:25, 35:14, 35:24, 36:2, 36:4, 36:8, 41:18, 43:25, 56:3, 59:19, 69:14 OLIVER [1] - 33:19 once [4] - 50:24, 53:8, 63:8, 65:19 one [36] - 11:12, 15:17, 17:15, 19:15, 20:21, 22:25, 23:1, 24:19, 24:20, 35:6, 38:22, 42:10, 44:21, 45:5, 47:18, 48:2, 49:13, 49:14, 52:3, 52:18, 61:8, 61:16, 61:18, 62:14, 63:17, 66:7, 67:19, 69:9, 70:23, 72:16, 72:17, 72:18, 74:18, 76:13, 77:14, 78:20 one-half [1] - 20:21 ones [1] - 47:5 open [1] - 23:10 operated [1] - 14:10 operating [2] - 15:14, 68:3 operator [11] - 5:4, 11:18, 14:12, 14:21, 14:24, 15:6, 17:10, 17:14, 20:21, 25:19, 81:19 operators [1] - 8:8 opinion [3] - 19:21, 50:22, 67:1 opinions [1] - 71:19 opportunity [7] - 12:21, 13:22, 15:24, 18:23, 26:16,	45:17, 45:18 opposed [2] - 54:24, 60:4 opposition [1] - 7:15 optical [1] - 72:13 order [34] - 5:14, 5:20, 5:24, 6:3, 6:7, 7:5, 8:10, 9:8, 9:11, 13:8, 15:8, 16:21, 17:11, 17:12, 18:8, 18:15, 18:25, 19:4, 22:12, 23:11, 23:12, 23:24, 24:14, 26:13, 27:8, 27:11, 28:3, 37:20, 38:25, 55:5, 55:24, 62:6, 67:14 ordered [2] - 8:16, 21:10 orderly [2] - 7:6, 7:20 orders [8] - 8:9, 8:20, 8:21, 9:10, 17:23, 17:25, 22:5, 27:11 originated [4] - 73:10, 73:12, 75:17, 75:19 Orleans [1] - 34:14 otherwise [1] - 47:1 outlined [1] - 9:19 outset [1] - 11:9 outside [2] - 27:22, 81:10 outstanding [1] - 80:11 overall [2] - 36:19, 36:20 overcome [1] - 31:9 overrule [1] - 69:12 overruled [1] - 9:25 overwhelming [1] - 31:16 own [1] - 41:3
N	name [1] - 33:24 named [1] - 58:2 names [1] - 5:16 national [1] - 45:9 National [1] - 48:12 nature [5] - 18:9, 24:23, 27:13, 40:19, 50:16 necessarily [3] - 65:11, 66:14, 66:19 necessary [3] - 9:16, 20:10, 81:8 necessitates [1] - 26:23 need [7] - 10:18, 18:3, 19:23, 28:22, 38:9, 42:10, 82:12 needed [2] - 10:15, 17:22 needs [7] - 17:19, 18:24, 22:8, 23:23, 31:17, 31:19, 33:4 NEIMAN [7] - 38:17, 38:23, 39:2, 39:5, 39:7, 39:19, 80:15		P
			page [39] - 16:13, 36:6, 37:8, 40:4, 41:6, 41:25, 43:6, 44:1, 44:2, 44:11, 45:20, 45:23, 46:21, 46:22, 48:8, 49:3, 51:12, 56:25, 57:16, 57:21, 57:22, 61:10, 61:12, 61:15, 69:18, 72:1, 72:10, 72:14, 72:21, 72:24, 72:25, 73:4, 74:1, 74:9, 74:12, 74:13, 74:14, 74:15, 75:2 pages [1] - 57:21 pair [1] - 51:14 pan [1] - 15:9 panned [2] - 11:19, 14:23 paper [2] - 8:4, 50:5 paragraph [14] - 36:7, 36:9, 36:10, 36:11, 36:15, 36:17, 36:18, 37:12, 51:3, 73:22, 74:1, 78:5 paralegal [1] - 11:22 paramount [1] - 27:3 Parish [1] - 34:13 part [9] - 10:24, 14:2, 16:3, 27:23, 28:25, 76:9, 76:10, 78:22

participate [1] - 71:12
participated [1] - 32:9
participating [1] - 71:11
participation [1] - 14:11
particular [4] - 23:1, 27:12, 57:4, 62:23
parties [26] - 6:14, 7:22, 15:16, 18:10, 18:12, 19:9, 20:5, 20:8, 21:15, 25:7, 26:7, 26:9, 26:12, 27:5, 27:25, 28:17, 29:5, 31:24, 37:23, 38:11, 80:1, 80:13, 80:24, 81:17, 82:18, 82:25
parties' [1] - 26:22
party [6] - 19:23, 19:25, 20:22, 31:24, 70:19, 82:12
passed [1] - 8:2
past [2] - 13:3, 25:10
patience [3] - 20:7, 26:22, 26:25
pay [1] - 51:17
peaks [1] - 62:11
pen [1] - 53:12
people [12] - 16:2, 47:3, 47:24, 49:19, 55:9, 56:10, 63:2, 66:12, 66:13, 67:24, 68:13, 77:2
per [1] - 8:20
percent [4] - 43:3, 68:8, 68:14, 69:22
perform [4] - 55:22, 60:6, 62:6, 71:10
performed [1] - 47:15
performing [2] - 60:4, 60:11
perhaps [3] - 20:13, 24:16, 55:10
period [2] - 23:9, 53:14
permanence [1] - 18:25
permanent [2] - 9:9, 19:2
permission [4] - 44:9, 44:19, 44:22, 44:23
permitted [4] - 4:22, 6:20, 6:21, 21:11
persist [1] - 54:4
person [24] - 7:3, 7:15, 7:21, 47:11, 47:18, 51:22, 51:23, 53:17, 54:25, 58:2, 62:17, 65:17, 66:18, 68:4, 68:8, 68:14, 68:15, 69:22, 77:14, 78:18, 78:20, 82:16
person's [3] - 45:15, 47:20, 53:6
personal [1] - 66:2
persons [4] - 6:19, 80:13, 81:12, 82:25
perspective [1] - 13:13
phases [1] - 14:6
phone [3] - 6:23, 6:25, 7:1
phones [1] - 6:21
photographed [1] - 9:3

photographer [3] - 5:5, 26:3, 82:2
photographs [2] - 7:14, 16:1
photography [2] - 5:11, 22:4
photos [1] - 5:12
phrase [2] - 40:21, 67:17
physical [1] - 66:23
physically [2] - 81:13, 82:20
pick [2] - 33:16, 53:19
picking [1] - 38:14
piece [1] - 8:3
pieces [1] - 16:4
pins [1] - 7:13
place [5] - 15:15, 25:23, 28:8, 32:8, 55:15
placed [3] - 15:4, 15:18, 25:11
plaintiff's [1] - 77:20
Plaintiff's [1] - 35:7
Plaintiffs' [1] - 46:18
plans [1] - 59:4
plate [1] - 72:6
play [3] - 80:17, 81:25, 82:7
played [1] - 82:8
playing [1] - 82:9
pleading [1] - 12:7
pledger [1] - 30:7
podium [1] - 38:9
POI [1] - 54:24
point [17] - 8:17, 9:7, 9:14, 13:25, 14:20, 15:14, 16:1, 18:15, 19:15, 49:21, 52:1, 63:8, 63:25, 64:4, 68:22, 70:9
pointed [2] - 17:1, 57:8
points [2] - 26:19, 30:12
policy [7] - 41:12, 42:4, 43:8, 44:25, 45:1, 45:5, 45:10
pool [1] - 5:11
population [3] - 52:10, 74:3, 75:23
portable [1] - 6:19
portion [5] - 12:8, 21:4, 31:3, 32:19, 37:24
position [4] - 7:16, 34:7, 39:22, 64:5
possession [1] - 6:22
possibilities [3] - 37:6, 53:25, 62:7
possibility [1] - 45:16
possible [28] - 37:3, 37:11, 37:15, 40:6, 45:3, 45:4, 45:10, 45:13, 52:4, 53:9, 53:12, 53:22, 55:12, 57:10, 57:19, 65:7, 65:8, 67:9, 68:10, 68:11, 68:19, 69:24, 72:7, 72:8, 72:11, 72:12,

73:16
possibly [1] - 29:20
potential [3] - 9:17, 16:23, 65:9
potentially [1] - 55:25
practice [3] - 14:21, 26:23, 55:23
practitioners [1] - 48:17
preclude [2] - 22:16, 22:22
prejudice [1] - 16:23
preliminarily [1] - 22:15
preliminary [12] - 10:14, 21:8, 22:17, 22:23, 24:3, 29:2, 29:3, 29:19, 30:21, 31:8, 31:20, 82:15
premature [1] - 10:2
premise [1] - 57:13
premises [1] - 56:22
preparation [1] - 13:12
prepared [2] - 18:21, 22:22
preruling [1] - 28:6
presence [4] - 4:18, 20:5, 39:21, 56:20
present [23] - 5:3, 6:13, 7:18, 39:20, 53:6, 54:11, 60:10, 65:10, 65:13, 65:14, 67:15, 68:8, 68:9, 68:10, 68:15, 68:16, 69:22, 76:15, 79:20, 79:21, 81:13, 82:20
presentation [1] - 58:23
presentations [1] - 58:23
presented [3] - 27:6, 29:11, 32:18
preserving [1] - 45:1
pretty [1] - 45:6
prevent [2] - 12:15, 81:8
preventing [1] - 27:21
previous [1] - 15:3
previously [6] - 12:10, 21:2, 21:10, 22:13, 22:22, 23:7
prima [1] - 31:9
principles [1] - 26:9
privacy [1] - 81:5
private [1] - 5:2
privileged [1] - 5:2
proactively [1] - 22:16
Probabilistic [1] - 41:22
probabilities [1] - 66:25
probability [9] - 51:14, 51:20, 73:21, 74:2, 75:21, 75:22, 78:7, 78:9, 78:11
probable [8] - 29:6, 29:15, 31:7, 31:10, 52:5, 63:7, 63:9, 69:1
problem [2] - 8:11, 8:12
procedure [2] - 44:18, 68:3
procedures [2] - 25:22, 26:12
proceed [2] - 7:2, 81:18

proceeding [5] - 9:24, 9:25, 25:7, 26:4, 83:2
proceedings [18] - 4:22, 5:9, 6:14, 6:19, 7:2, 9:24, 19:17, 22:3, 24:1, 24:10, 24:14, 27:4, 27:12, 27:13, 27:21, 27:22, 28:1, 83:1
Proceedings [2] - 4:3, 83:5
process [3] - 14:16, 62:12, 70:19
processes [3] - 25:9, 25:15, 25:25
product [1] - 59:21
professionalism [1] - 82:24
proffer [1] - 64:8
proficiency [1] - 71:12
profile [12] - 50:9, 51:20, 53:4, 53:10, 57:18, 62:7, 65:9, 67:15, 67:18, 67:20, 73:9, 76:20
profiles [7] - 37:4, 50:14, 53:16, 58:9, 65:1, 75:16, 77:17
program [2] - 59:10, 59:16
prohibit [2] - 24:2, 27:20
prohibited [2] - 19:19, 21:12
prohibiting [1] - 27:8
projected [1] - 34:2
proportional [2] - 13:9, 28:2
proposition [3] - 51:13, 52:3, 52:5
propositions [2] - 51:14, 67:2
prosecution [5] - 29:25, 30:9, 31:13, 31:14, 79:17
prosecution's [2] - 30:23, 31:4
protect [3] - 6:16, 9:12, 23:13
protected [2] - 72:15, 74:16
protections [1] - 4:25
protocol [1] - 4:20
protocols [1] - 73:17
provided [2] - 14:3, 45:18
provides [1] - 42:19
providing [2] - 8:2, 50:22
provocative [1] - 7:8
public [9] - 6:15, 13:15, 16:16, 16:19, 16:20, 17:4, 21:3, 23:8, 81:5
publication [10] - 8:19, 21:12, 24:10, 27:8, 39:16, 48:10, 48:12, 80:12, 81:9, 82:5
publicity [1] - 12:13
publicly [2] - 16:7, 21:3
publish [1] - 17:12
published [10] - 8:14, 8:16, 11:13, 12:11, 13:14, 14:5,

25:1, 38:22, 38:23, 80:22 publishing [1] - 79:23 pull [2] - 43:25, 71:24 punch [1] - 25:20 purpose [6] - 5:7, 13:2, 28:23, 29:5, 31:17, 32:5 purposes [1] - 16:23 put [8] - 9:5, 9:6, 14:19, 15:20, 20:15, 35:22, 48:16, 70:25 putting [1] - 5:15	reading [1] - 47:24 reads [1] - 47:17 ready [2] - 19:8, 82:7 realized [4] - 9:2, 11:19, 11:21, 11:24 really [4] - 12:14, 29:13, 29:14, 30:13 reason [5] - 12:3, 50:2, 60:20, 60:24, 78:23 reasonable [9] - 4:24, 30:2, 31:3, 31:13, 43:9, 43:10, 43:11, 43:15, 58:6 reasoned [1] - 26:4 reasoning [1] - 27:18 reasons [2] - 23:12, 23:13 rebuttal [2] - 79:19, 79:20 recalling [1] - 15:8 recantations [1] - 31:11 receive [3] - 43:19, 44:8, 44:19 received [5] - 34:20, 36:4, 44:3, 44:22, 55:18 receiver [2] - 72:15, 74:17 receiving [1] - 44:23 recess [7] - 4:23, 19:23, 20:1, 20:2, 20:6, 21:19 recitation [1] - 21:17 recognition [2] - 17:6, 25:19 recognize [9] - 10:7, 11:9, 17:20, 26:7, 26:10, 34:25, 35:9, 35:17, 44:13 recognized [4] - 13:16, 15:7, 15:8, 17:23 recognizes [2] - 4:17, 25:16 recommendations [2] - 48:23, 49:4 recommended [1] - 45:10 reconsider [1] - 23:24 record [22] - 4:17, 5:16, 9:9, 12:6, 13:7, 17:19, 19:24, 20:3, 20:14, 20:15, 21:8, 21:16, 28:15, 31:22, 32:19, 43:21, 45:23, 80:5, 80:21, 81:4, 82:12 recording [2] - 5:2, 82:3 recordings [1] - 24:10 recovered [1] - 54:20 REDIRECT [1] - 76:3 redirected [1] - 20:21 redisplay [1] - 39:25 refer [9] - 9:15, 30:6, 43:21, 46:20, 71:21, 72:24, 72:25, 74:12, 77:19 reference [2] - 65:2, 78:4 referenced [2] - 50:5, 63:11 referencing [1] - 68:17 referring [1] - 41:11 refine [1] - 25:9 reflects [1] - 37:20	reframe [1] - 63:12 reframed [1] - 63:15 refresh [1] - 44:2 regard [7] - 53:2, 54:20, 67:17, 74:9, 75:3, 76:17, 77:25 regarding [4] - 5:8, 31:3, 50:16, 50:22 regardless [1] - 65:2 regards [2] - 28:8, 80:11 regulatory [2] - 48:20, 48:23 reinforce [1] - 17:6 reiterated [1] - 25:14 reiteration [1] - 26:8 relate [2] - 35:21, 36:11 related [1] - 78:5 relates [9] - 21:14, 28:4, 31:25, 54:24, 66:1, 66:3, 75:14, 80:2, 81:2 relation [2] - 28:19, 77:9 released [1] - 16:13 relevance [3] - 31:21, 63:7, 63:21 relevant [4] - 32:17, 41:12, 65:25, 69:5 reliability [2] - 29:8, 29:13 reliable [2] - 29:11, 29:12 remain [1] - 7:6 remaining [1] - 46:14 remains [1] - 27:17 remarks [1] - 25:9 remedies [1] - 24:19 remedy [12] - 9:17, 10:3, 11:25, 12:14, 12:15, 16:24, 18:21, 19:5, 22:9, 24:8, 24:15, 24:17 remember [2] - 18:9, 74:10 remind [1] - 29:5 reminded [1] - 6:19 renew [1] - 22:2 repeated [1] - 45:17 repeatedly [2] - 9:22, 29:6 repeats [4] - 60:8, 60:10, 60:12, 60:13 rephrased [1] - 69:13 report [39] - 24:23, 32:22, 32:24, 34:25, 35:2, 35:9, 35:11, 35:13, 35:18, 36:10, 41:3, 41:6, 41:8, 43:4, 45:24, 46:6, 46:13, 46:20, 47:17, 47:23, 47:24, 48:4, 48:21, 49:5, 49:23, 50:9, 51:4, 53:2, 54:16, 66:7, 67:16, 71:22, 71:23, 71:24, 73:19, 77:19, 78:4, 78:23, 78:25 Report [1] - 56:2 reported [2] - 17:5, 75:12 reporting [4] - 48:21, 49:15, 49:23, 49:24	Reports [1] - 41:21 reports [14] - 24:24, 32:18, 32:19, 35:4, 35:21, 41:11, 41:15, 41:16, 41:17, 42:6, 42:23, 43:12, 49:15, 52:23 represent [3] - 10:2, 36:8, 78:10 representation [1] - 13:4 representations [1] - 12:23 representative [4] - 4:18, 38:18, 81:14, 81:15 represents [1] - 26:8 request [22] - 18:21, 22:2, 22:15, 23:1, 23:2, 27:2, 27:14, 27:16, 27:19, 27:23, 28:5, 28:7, 34:20, 44:19, 44:20, 54:19, 55:21, 55:23, 80:17, 82:19 requested [7] - 9:17, 18:12, 24:19, 32:1, 55:18, 56:5, 81:11 requesting [1] - 21:16 requests [3] - 10:1, 22:24 require [3] - 6:2, 71:1, 71:7 required [3] - 42:4, 71:10, 71:14 requirement [1] - 12:3 requirements [1] - 5:23 requires [2] - 14:11, 43:8 requiring [1] - 30:9 researchers [2] - 62:22, 63:18 reserves [1] - 28:3 residence [1] - 58:2 respect [12] - 4:20, 7:4, 9:11, 19:12, 27:14, 27:19, 43:14, 47:10, 57:17, 79:22, 80:20, 82:25 respectful [1] - 7:20 respectfully [2] - 10:11, 27:16 respond [2] - 12:21, 19:25 responded [1] - 21:1 response [3] - 17:22, 19:7, 33:5 responsibilities [1] - 34:17 responsible [2] - 38:11, 38:13 restrictive [1] - 81:11 result [6] - 19:20, 25:24, 35:2, 42:14, 55:11, 68:13 results [4] - 50:21, 51:14, 52:3, 75:11 resume [1] - 82:10 retained [1] - 46:7 returning [1] - 79:17 reverse [2] - 22:12, 27:15 review [10] - 6:2, 18:6, 18:18, 18:23, 18:24, 19:13, 19:23, 20:7, 57:1, 69:12 reviewed [9] - 5:19, 11:16,
Q			
qualification [2] - 71:8, 71:13 qualifications [1] - 42:3 qualifier [1] - 52:18 qualifiers [1] - 40:18 quality [2] - 9:5, 34:15 quantity [1] - 66:23 quest [1] - 22:20 questioned [1] - 65:1 questioning [1] - 64:17 questions [4] - 12:19, 29:12, 29:13, 73:5 quick [2] - 11:23, 80:5 quickly [1] - 25:21 quiet [1] - 7:6 quintillion [2] - 49:18, 49:20 quite [5] - 15:6, 54:5, 55:22, 65:4, 65:13 quote [5] - 28:22, 28:23, 30:15, 30:21, 31:14			
R			
random [4] - 51:24, 78:7, 78:9, 78:11 rate [2] - 42:16, 78:19 rather [1] - 66:25 ratio [26] - 36:12, 41:2, 41:4, 42:19, 43:4, 49:16, 51:3, 51:19, 52:2, 57:15, 66:9, 66:15, 66:22, 66:25, 67:1, 67:5, 67:10, 73:7, 73:24, 75:7, 75:15, 75:25, 78:10, 78:12, 78:13, 78:23 ratios [3] - 51:12, 51:13, 73:6 re [2] - 4:22, 64:22 re-asked [1] - 64:22 re-enter [1] - 4:22 reach [1] - 44:20 reactions [1] - 7:11 read [12] - 12:5, 12:6, 21:8, 23:10, 32:19, 36:9, 36:10, 36:14, 36:25, 37:12, 51:2, 69:19 readdress [1] - 81:1			

13:11, 14:13, 21:19, 27:7, 48:3, 61:10, 61:11
reviewing [2] - 19:10, 21:19
revisitation [1] - 26:2
Richard [1] - 4:12
ridge [4] - 72:7, 72:8, 72:12
rifle [11] - 57:2, 57:7, 72:5, 72:6, 72:7, 72:8, 72:9, 72:11, 72:16, 73:3, 74:17
rights [9] - 6:17, 7:20, 8:23, 18:10, 20:10, 27:2, 27:5, 81:5
rises [1] - 26:22
risks [2] - 25:2
roadway [1] - 22:19
Robinson [21] - 4:5, 4:13, 4:16, 6:17, 27:2, 37:2, 37:14, 56:7, 57:6, 57:18, 57:20, 58:3, 61:21, 71:20, 72:4, 73:10, 75:17, 80:5, 80:8, 82:19
Robinson's [9] - 8:24, 9:12, 9:21, 23:13, 51:5, 54:17, 56:6, 57:3, 58:4
role [3] - 5:11, 5:13, 17:20
roles [1] - 5:9
rule [3] - 32:5, 64:24, 82:1
ruled [1] - 80:16
rules [2] - 29:4, 81:16
ruling [18] - 25:14, 25:18, 26:15, 26:18, 27:1, 27:15, 27:17, 28:11, 28:17, 37:21, 38:3, 39:18, 80:3, 80:14, 80:20, 81:1, 81:6, 81:17
rulings [1] - 26:5
run [3] - 14:14, 15:25, 25:10
rush [2] - 18:19, 26:24
Ryan [1] - 4:7

S

safe [1] - 7:19
safeguard [1] - 4:24
safety [1] - 6:12
sale [1] - 15:20
sample [27] - 37:10, 37:11, 42:21, 46:25, 52:15, 54:23, 54:24, 55:1, 55:4, 57:3, 57:6, 62:17, 65:2, 66:16, 66:17, 67:12, 67:17, 74:3, 76:5, 76:16, 76:17, 76:18, 76:21, 77:12, 77:16, 77:18
samples [37] - 36:11, 36:19, 44:9, 44:24, 45:1, 45:3, 45:10, 45:21, 46:1, 46:5, 46:11, 46:15, 46:17, 46:18, 46:19, 46:24, 47:1, 54:9, 54:10, 54:12, 54:20, 55:13, 55:18, 55:21, 55:24, 56:5, 56:19, 56:20, 61:14, 64:25, 66:6, 75:23, 76:13,

77:13, 77:25, 78:1
sanction [15] - 9:18, 10:19, 17:22, 18:21, 23:4, 26:1, 26:13, 27:14, 27:20, 28:1, 28:3, 39:1, 39:17, 81:2, 81:4
satisfactory [1] - 24:17
satisfy [3] - 71:8, 71:13, 71:17
save [1] - 28:22
saw [2] - 18:16, 25:20
scale [6] - 40:8, 40:10, 40:12, 40:20, 40:25, 42:9
scenarios [1] - 51:21
scheduled [1] - 32:4
Schmidt [2] - 30:1
scientific [5] - 40:21, 43:9, 43:10, 43:15, 51:2
scientifically [1] - 51:8
scope [3] - 22:6, 29:18, 31:22
scores [1] - 30:12
screen [16] - 4:25, 11:14, 11:15, 11:20, 11:21, 13:1, 14:23, 15:4, 16:17, 17:13, 17:14, 18:13, 18:14, 18:17, 25:21, 82:2
screenshot [1] - 15:19
scroll [2] - 49:3, 56:25
seal [1] - 23:8
search [4] - 16:9, 16:11, 16:13, 21:3
seated [3] - 4:13, 33:13, 33:15
second [6] - 5:4, 14:15, 22:5, 35:6, 54:16, 61:15
secondhand [1] - 9:4
seconds [7] - 11:17, 15:7, 15:9, 15:13, 20:21, 20:23, 24:12
section [3] - 34:6, 34:8, 70:22
security [1] - 4:21
see [7] - 36:15, 38:18, 39:15, 39:21, 55:14, 60:14, 64:19
seeing [3] - 19:25, 66:2, 77:8
seized [1] - 56:6
selectively [1] - 32:18
selling [1] - 59:21
seminars [1] - 58:22
sensitive [1] - 55:22
sensitivity [1] - 53:3
sentences [1] - 41:7
separately [1] - 81:3
September [14] - 16:10, 21:7, 22:18, 22:20, 23:3, 24:3, 28:4, 28:10, 34:16, 34:19, 35:3, 44:4, 82:16, 83:3

sequence [10] - 13:2, 13:6, 58:19, 60:3, 60:8, 60:15, 60:22, 63:1, 63:3, 65:16
sequences [2] - 58:18, 63:19
sequencing [12] - 58:17, 59:23, 60:2, 63:22, 63:23, 64:10, 64:11, 64:12, 64:14, 64:16, 64:17, 65:20
seriously [1] - 17:2
session [2] - 4:4, 20:4
set [5] - 5:23, 14:24, 70:20, 70:23, 70:25
sets [2] - 51:3, 70:22
seven [1] - 77:2
several [3] - 16:6, 47:22, 71:21
shake [1] - 7:10
shall [9] - 7:6, 7:7, 7:9, 7:10, 7:11, 7:13, 27:24, 42:15, 42:18
share [1] - 18:22
Sheriff's [1] - 34:14
shook [1] - 53:19
short [1] - 24:11
show [1] - 16:17
showing [1] - 31:10
shown [5] - 14:7, 14:8, 14:18, 82:25
sic [1] - 40:24
side [3] - 14:15, 20:16
sift [1] - 30:16
signaling [1] - 67:22
significance [2] - 32:20, 36:23
significant [1] - 25:17
signs [2] - 7:14, 76:15
silence [1] - 7:1
similar [2] - 43:10, 78:11
similarly [3] - 53:18, 57:17, 58:9
simple [2] - 65:4, 65:13
simplify [1] - 48:17
simply [2] - 29:21, 80:19
single [3] - 8:3, 46:25, 66:17
sit [1] - 10:10
sitting [2] - 38:19, 53:12
six [3] - 16:11, 23:9, 77:2
six-month [1] - 23:9
sleepless [1] - 16:24
small [1] - 15:22
smoothly [1] - 14:9
snap [1] - 26:24
software [6] - 53:4, 59:14, 59:18, 60:24, 62:6
sold [1] - 59:13
solely [2] - 68:9, 68:15
solemn [1] - 6:16
someone [4] - 15:19, 42:25,

44:9, 77:8
Sometimes [1] - 28:22
sometimes [4] - 14:22, 15:18, 31:11, 47:2
soon [5] - 9:2, 11:19, 11:20, 11:24, 13:16
SOP [2] - 68:17, 69:16
sophisticated [2] - 53:3, 62:12
sorry [3] - 48:1, 49:3, 74:14
sort [5] - 14:4, 17:21, 22:15, 47:12, 50:20
sorting [2] - 67:25, 68:23
source [12] - 42:20, 42:25, 46:25, 50:22, 50:24, 51:6, 52:14, 66:17, 78:20, 78:22, 78:25
speaking [3] - 30:8, 31:7, 65:5
speaks [2] - 66:15, 78:24
specific [5] - 10:1, 48:5, 48:22, 67:2, 70:25
specifically [5] - 9:12, 9:24, 14:24, 70:20, 70:21
specificity [1] - 9:16
spectators [4] - 7:6, 7:7, 7:9, 7:13
speed [1] - 19:14
spent [3] - 8:13, 20:12, 28:25
sphere [1] - 17:4
split [1] - 45:10
stable [1] - 54:5
Staci [1] - 4:12
staff [1] - 6:15
stage [1] - 29:24
stance [1] - 41:2
standard [8] - 29:15, 30:8, 31:7, 41:16, 44:18, 55:23, 68:3
standards [7] - 70:20, 70:23, 70:25, 71:9, 71:14, 71:17
Standards [1] - 48:13
standing [9] - 5:20, 7:5, 28:23, 29:17, 31:21, 32:7, 32:11, 32:13, 45:5
standpoint [1] - 51:2
stands [3] - 39:3, 41:3, 58:17
start [3] - 28:15, 28:20, 32:4
started [3] - 7:23, 34:12, 44:5
State [5] - 4:5, 30:1, 30:25, 31:6, 34:21
state [50] - 4:8, 5:9, 8:3, 8:11, 8:18, 9:1, 10:23, 11:7, 13:25, 14:12, 19:4, 23:7, 23:8, 23:23, 24:6, 29:17, 29:21, 30:7, 30:14, 30:19, 32:3, 32:8, 32:17,

35:14, 35:22, 35:25, 36:8, 36:17, 37:10, 37:12, 37:13, 38:4, 42:12, 42:13, 42:15, 43:3, 43:8, 48:24, 62:4, 69:2, 73:25, 78:18, 78:19, 78:20, 78:22, 79:20, 81:19, 81:22, 82:6, 82:13
State's [3] - 34:23, 80:12, 82:10
state's [1] - 30:3
statement [4] - 28:20, 31:25, 41:17, 50:3
statements [1] - 50:25
States [1] - 59:8
states [3] - 42:8, 42:9, 42:18
stating [3] - 42:24, 50:11, 73:23
statistic [15] - 41:3, 43:5, 49:17, 51:1, 51:19, 57:15, 73:22, 73:24, 75:21, 78:4, 78:5, 78:8, 78:10, 78:23, 78:25
statistical [1] - 74:9
statistics [3] - 49:16, 52:9, 74:7
status [1] - 7:16
step [2] - 14:16, 79:12
still [8] - 5:5, 5:12, 22:4, 23:22, 78:12, 78:15, 82:2, 82:4
stock [2] - 72:5, 77:16
stop [3] - 20:24, 23:21, 74:6
STR [4] - 49:25, 59:21, 60:5, 64:24
strand [1] - 61:19
stream [8] - 13:1, 13:11, 15:19, 16:2, 18:7, 20:20, 21:13, 81:7
streaming [1] - 80:21
strike [1] - 22:8
strikes [1] - 22:8
STRmix [5] - 59:10, 59:16, 59:21, 62:5
strong [2] - 40:9, 40:23
strongly [2] - 40:18
study [1] - 66:22
Sturgill [1] - 4:8
subject [1] - 78:15
subjective [1] - 41:1
subsequent [1] - 37:9
suggest [5] - 10:3, 16:15, 50:8, 52:8, 58:9
suggesting [2] - 18:19, 62:10
suggestion [4] - 10:20, 11:5, 19:8, 24:14
suitable [2] - 77:5, 77:6
summarize [1] - 23:21
summarized [1] - 23:7
summary [1] - 21:24

support [28] - 7:15, 37:2, 37:14, 40:5, 40:7, 40:9, 40:14, 40:15, 40:22, 40:23, 41:2, 41:4, 41:5, 50:25, 52:3, 56:23, 57:5, 57:10, 57:20, 57:23, 58:9, 71:20, 72:3, 74:4, 75:24
supported [1] - 47:24
supposed [1] - 42:5
Supreme [3] - 30:7, 30:19, 31:6
surveillance [1] - 81:23
suspect [2] - 23:24, 57:12
suspects [1] - 56:21
sustain [3] - 63:14, 64:21, 66:5
swab [6] - 46:10, 53:15, 55:3, 57:2, 57:4, 72:23
Swab [1] - 57:18
swabbed [3] - 53:6, 53:11, 76:11
swabs [22] - 46:12, 46:14, 57:6, 57:24, 72:5, 72:6, 72:8, 72:9, 72:11, 72:12, 72:15, 72:16, 72:17, 72:18, 73:2, 74:16, 74:18, 74:19, 76:5, 76:8, 77:16
switched [2] - 81:20, 81:22
sworn [3] - 33:11, 33:12, 33:20
Systems [1] - 41:23

T

table [2] - 38:8, 57:1
tables [1] - 46:20
tasks [1] - 30:17
technique [3] - 58:18, 58:25, 59:1
techniques [1] - 53:3
technological [1] - 19:5
Technology [1] - 48:13
technology [1] - 60:17
temporary [1] - 81:7
term [3] - 29:8, 40:5, 76:20
terms [6] - 37:6, 37:10, 47:6, 48:5, 50:3, 51:18
Tess [1] - 5:17
test [1] - 53:15
tested [4] - 36:11, 54:9, 56:13, 75:9
testified [3] - 33:21, 63:22, 64:10
testify [4] - 40:7, 40:8, 80:6, 80:7
testifying [1] - 24:24
testimony [13] - 15:5, 25:3, 29:10, 29:18, 31:15, 31:18, 32:3, 32:11, 33:16, 42:1, 57:9, 64:18, 73:5
Testimony [1] - 41:21

testing [21] - 44:24, 45:1, 45:17, 47:15, 48:20, 48:22, 52:20, 52:22, 55:22, 60:4, 60:5, 60:10, 61:6, 63:25, 65:24, 70:24, 71:10, 71:12, 71:16
text [6] - 16:8, 16:14, 17:3, 17:4, 21:2
THACKREY [6] - 5:13, 5:18, 5:22, 6:1, 6:5, 6:9
Thackrey [1] - 5:18
themselves [1] - 74:19
thereby [1] - 27:21
therefore [4] - 26:7, 64:1, 64:5, 64:16
they've [1] - 9:11
thinks [1] - 18:24
third [6] - 22:8, 35:13, 35:18, 44:1, 44:2, 70:19
thorough [1] - 18:10
threatening [1] - 7:9
three [16] - 14:6, 14:8, 14:16, 35:4, 41:10, 41:15, 49:15, 52:22, 62:24, 63:17, 68:4, 68:9, 68:13, 68:15, 69:22, 73:11
three-mixtures [1] - 68:9
three-person [3] - 68:4, 68:15, 69:22
three-step [1] - 14:16
throughout [2] - 67:16, 83:1
tie [1] - 66:2
tie-in [1] - 66:2
timely [3] - 12:3, 22:25, 23:1
timing [1] - 50:17
Tobacco [1] - 34:5
today [9] - 5:24, 7:2, 12:15, 13:12, 21:20, 22:15, 28:15, 28:19, 30:12
today's [5] - 5:8, 5:10, 22:13, 27:21, 28:1
together [9] - 15:16, 15:22, 25:8, 48:16, 75:4, 75:8, 75:9, 75:12, 76:11
took [4] - 11:20, 19:1, 19:5, 20:6
tool [5] - 57:24, 58:4, 58:10, 60:25
top [1] - 41:7
total [1] - 82:17
touch [1] - 53:20
touched [4] - 53:5, 53:11, 53:23, 58:3
touches [1] - 53:14
training [1] - 67:13
transmission [1] - 82:10
transmitted [2] - 37:21, 81:9
transparency [2] - 20:10,

27:3
treated [1] - 7:4
trial [7] - 9:13, 23:14, 29:20, 30:5, 30:17, 30:18, 81:5
trier [2] - 31:5, 69:4
trigger [14] - 53:20, 53:21, 72:6, 72:7, 73:2, 76:5, 76:6, 76:9, 76:10, 76:24, 77:3
trillion [14] - 49:17, 49:19, 49:20, 49:21, 73:10, 73:13, 73:14, 73:18, 73:20, 74:4, 74:5, 74:7, 75:16, 75:25
true [11] - 17:2, 47:22, 49:10, 52:24, 52:25, 58:20, 60:23, 61:15, 62:22, 63:16, 69:21
truth [1] - 33:21
try [1] - 15:16
trying [7] - 11:3, 15:15, 17:21, 18:9, 70:2, 70:4, 70:5
turn [1] - 10:23
turning [5] - 11:7, 20:13, 21:25, 24:6, 28:12
twice [1] - 71:12
twice-a-year [1] - 71:12
Twiggs [4] - 56:7, 57:23, 58:2, 58:10
Twiggs' [1] - 58:4
two [26] - 10:24, 11:17, 14:1, 14:3, 15:12, 18:17, 22:8, 35:21, 35:22, 41:7, 51:20, 51:21, 57:21, 63:2, 63:17, 64:25, 66:12, 68:8, 68:15, 69:22, 70:22, 75:4, 75:6, 75:19, 77:16, 77:24
Tyler [8] - 4:5, 37:2, 37:14, 58:3, 71:20, 72:4, 73:10, 75:17
type [3] - 24:17, 40:10, 55:22
types [2] - 56:14, 56:16
typically [1] - 51:21

U

ultimately [1] - 12:17
ULTR [2] - 41:17, 42:8
unauthorized [1] - 6:22
unbelievable [1] - 30:22
uncertainty [3] - 43:4, 79:1, 79:2
unchanged [1] - 27:17
uncivil [1] - 7:8
under [1] - 26:12
Under [1] - 31:8
underlying [1] - 27:17
underside [2] - 72:15, 74:16
understood [1] - 68:25

unfired ^[1] - 74:25 unfocus ^[1] - 37:8 uniform ^[1] - 41:12 Uniform ^[1] - 41:21 unify ^[1] - 42:11 uninformative ^[1] - 40:15 uniqueness ^[1] - 52:10 United ^[1] - 59:8 unknown ^[5] - 51:24, 66:16, 73:11, 75:18, 75:19 unless ^[2] - 6:22, 18:5 unreasonable ^[1] - 30:22 unrelated ^[7] - 51:24, 73:11, 73:12, 74:2, 75:18, 75:19, 75:22 up ^[20] - 8:2, 9:6, 10:11, 11:12, 12:3, 14:24, 19:13, 28:23, 33:16, 35:7, 35:15, 38:14, 43:25, 51:1, 53:19, 56:3, 60:3, 69:14, 71:25, 82:17 updating ^[2] - 26:17, 80:25 uphold ^[1] - 6:16 URES ^[2] - 33:6, 38:7 useful ^[1] - 14:20 Utah ^[8] - 4:5, 30:1, 30:7, 30:14, 30:19, 30:25, 31:6, 34:21	voice ^[1] - 34:2 voluntary ^[1] - 70:18 vs ^[7] - 4:5, 30:1, 30:7, 30:14, 30:19, 30:25, 31:6	wrote ^[2] - 42:6, 54:16
V		
validated ^[1] - 71:2 value ^[1] - 66:22 variable ^[1] - 60:7 variations ^[2] - 60:5, 60:11 vary ^[1] - 66:11 vehicle ^[1] - 55:4 verbal ^[4] - 40:20, 40:25, 42:9, 52:18 versus ^[2] - 60:12, 66:12 victim ^[6] - 4:18, 38:18, 39:20, 80:16, 81:13, 81:14 victim's ^[4] - 31:10, 39:8, 39:9, 79:24 victims' ^[1] - 81:5 video ^[10] - 5:13, 11:16, 13:11, 14:13, 20:7, 22:4, 37:21, 82:3, 82:8, 82:10 view ^[8] - 13:14, 15:5, 29:24, 31:12, 38:13, 38:19, 39:9, 39:13 viewed ^[1] - 81:12 viewing ^[1] - 81:16 violated ^[5] - 9:8, 9:11, 22:7, 27:9 violation ^[6] - 17:10, 18:25, 19:2, 19:3, 27:10, 28:2 virgin ^[1] - 30:19 visible ^[2] - 7:11, 20:18 Visser ^[2] - 4:12, 80:10 VISSER ^[1] - 80:4	W	Y
	wait ^[5] - 10:6, 14:21, 18:22, 22:8, 49:2 waived ^[1] - 32:14 wants ^[3] - 18:5, 64:14, 69:9 warning ^[2] - 15:3, 15:6 warrant ^[3] - 16:9, 16:13, 21:3 warranted ^[2] - 9:18, 70:3 warrants ^[3] - 10:13, 11:4, 16:11 watching ^[1] - 16:2 water ^[1] - 33:14 ways ^[2] - 15:15, 23:15 wear ^[1] - 7:13 week ^[1] - 53:13 weigh ^[6] - 12:22, 18:9, 30:13, 30:16, 69:3, 70:5 weighed ^[1] - 69:2 weighing ^[2] - 29:14, 31:4 weight ^[6] - 10:15, 20:11, 64:2, 66:15, 69:5, 78:24 welcome ^[1] - 20:17 well-being ^[1] - 6:13 whatsoever ^[1] - 67:8 where'd ^[1] - 72:1 whole ^[1] - 58:20 wholly ^[2] - 22:10, 31:2 wire ^[1] - 15:15 wish ^[7] - 7:22, 21:15, 28:12, 31:24, 33:14, 70:3, 80:1 wishes ^[3] - 6:11, 20:16, 81:1 withdraw ^[1] - 63:12 witness ^[30] - 11:12, 13:13, 23:22, 24:20, 24:21, 28:13, 29:13, 32:3, 32:16, 32:25, 33:3, 33:8, 33:12, 33:17, 33:20, 35:15, 36:9, 40:7, 41:19, 43:25, 44:12, 48:9, 61:1, 63:21, 66:1, 71:25, 79:7, 79:9 witnesses ^[8] - 6:15, 29:1, 29:3, 30:12, 31:19, 32:6, 32:12, 79:15 word ^[4] - 16:8, 40:18, 41:2, 67:21 worded ^[1] - 49:5 words ^[6] - 19:2, 21:6, 40:7, 41:1, 47:11 works ^[1] - 16:19 world ^[2] - 9:8, 19:5 wrongfully ^[1] - 45:15	year ^[1] - 71:12 years ^[1] - 34:9 yesterday ^[7] - 14:2, 14:14, 23:5, 27:7, 39:17, 79:22, 80:16 yesterday's ^[1] - 81:1 yielded ^[1] - 75:7 yielding ^[3] - 74:3, 75:24 yourself ^[1] - 71:8
Z		
		Zealand ^[1] - 59:13 zero ^[2] - 42:15, 78:19